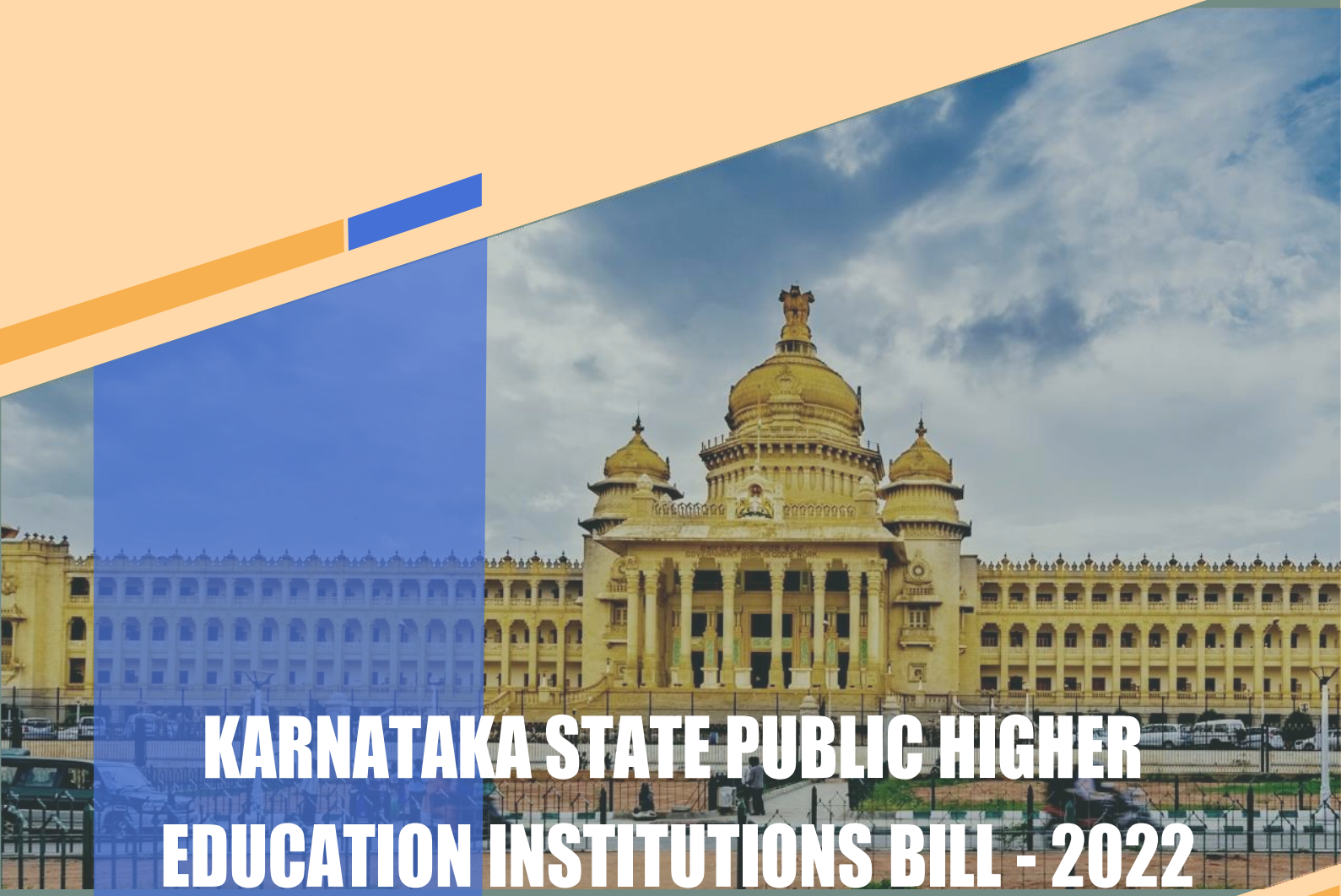
KARNATAKA STATE HIGHER EDUCATION COUNCIL



KARNATAKA STATE PUBLIC HIGHER EDUCATION INSTITUTIONS BILL - 2022

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A Report submitted
to
The Department of Higher Education
Government of Karnataka

by
The Committee under the Chairmanship of

Dr. Vasudev K. Aatre
Former Scientific Advisor to Defense Minister, GoI

April, 2022

The Government of Karnataka constituted a Committee under the Chairmanship of Dr. Vasudev K. Aatre on 09-04-2020 through GO. No ED 113 UNE 2020 to draft a comprehensive Karnataka State Higher Education Institutions Bill in place of the existing several Universities Acts.

The Bill drafted by the Committee for State Public Universities is being presented herewith to the Government for further needful.

Sl. No	Name	Designation	Signature with Date
1	Dr. Vasudev K. Aatre	Chairman	
2	Dr. B. Thimme Gowda	Member	
3	Dr. S. Sadagopan	Member	
4	Dr. Geetha Narayanan	Member	
5	Dr. M. K. Sridhar	Member	
6	Dr. Gopalkrishna Joshi	Member Secretary	09.04.22

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FOREWORD

Every country needs to transform its educational systems to cater for the aspirations of its society and for the benefit the Country. Education is the principle effective enabler to achieve this in knowledge centric society and economy.

Governance plays key role in keeping any system vibrant. Developing shared vision, building a strategic plan, inspiring all the stakeholders to align their energy towards reaching the common goals, and bringing in transparency and accountability in functioning of the system are the essential attributes of Good Governance.

Education all over the world is responding to the changes happening around to stay relevant besides offering new directions for growth. Government of India announced National Education Policy 2020 (NEP) on July 29, 2020 that calls for transforming Indian Education System. The Karnataka State is in the forefront of implementing this policy. Apropos a committee was constituted by the Government of Karnataka to draft a bill that transforms governance of Higher Education Institutions based on the key recommendations of NEP.

The Committee constituted for this task has drafted two separate bills one for State Public Universities and the other for State Private Universities to resonate with the NEP. While both the bills are drafted on common principles, they both address specific concerns of the respective sponsors.

While thanking the Government of Karnataka for giving the opportunity, the Committee is submitting the bills hoping that it paves the way for transformational changes in the higher education ecosystem and making it relevant to the needs of the day.

KARNATAKA STATE LEGISLATURE
ONE HUNDRED AND ..... SESSION

THE KARNATAKA STATE PUBLIC HIGHER EDUCATION INSTITUTIONS BILL - 2022

(L.A. Bill No. .....of 2022)

A Bill to provide for a comprehensive legislation, in the light of the National Education Policy-2020, for all the Multidisciplinary State Public Universities and Autonomous degree-granting Colleges under the purview of the Department of Higher Education in the State and to replace several Acts in force establishing such Universities and for matters connected therewith or incidental thereto.

Whereas it is expedient to provide for a comprehensive legislation for all Public Universities and Autonomous degree-granting Colleges coming under the purview of the Department of Higher Education in the State and to replace several Acts in force establishing such Universities and for matters connected therewith or incidental thereto.

Be it enacted by the Karnataka State Legislature in the seventy-third year of the Republic of India as follows:

CHAPTER - I
PRELIMINARY

1. Short title and commencement:- (1) This Act may be called the "Karnataka State Public Higher Education Institutions Act - 2022".

(2) It shall come into force from such date as the State Government may, by notification in the Official Gazette, appoint. Different dates may be appointed for different provisions of this Act.

2. Definitions:- In this Act, unless the context otherwise requires,

(1) "Academic Senate" means the Academic Senate of the University;

(2) "Academic staff" means Librarians/Deputy Librarians/ Assistant Librarians and Directors/ Deputy Directors /Assistant Directors/ College Directors of Physical Education and sports in a university or Autonomous degree-granting College or Constituent/ Affiliated College of a university / institution, imparting instructions.

(3) "Appointed day" means the date on which the provisions of this Act shall come into force.

(4) "Assessment Year" means the year following the year in which the income of a financial year is assessed or taxed";

(5) "Autonomous Degree-Granting College" means a large multidisciplinary institution of higher learning that grants undergraduate degrees and is primarily focused on

undergraduate teaching though it would not be restricted to that and it would generally be smaller than a typical university. A HEI or a College (Constituent/ Affiliated/ Autonomous College of a university) would be upgraded as an Autonomous degree-granting College as per the provisions of this Act and of the National Regulatory Bodies;

(6) "Board" or "Board of Governors" means the Board of Governors of the University, or the Autonomous degree-granting College established or deemed to have been established under the provisions of this Act;

(7) "Board of Management" means the Board of Management of the University or the Autonomous degree-granting College established or deemed to have been established under the provisions of this Act;

(8) "Chairperson of the Board of Governors" means the Chairperson of the Board of Governors as specified in the relevant Sections of this Act;

(9) "Chancellor" means the Chancellor of the University / Autonomous degree-granting College as specified in relevant Sections of this Act;

(10) "College" means, an Autonomous degree-granting College or an Institution maintained by the University as Constituent College and includes an Institution admitted to the privileges of the University as Affiliated College in accordance with the provisions of this Act;

(11) "Cluster University" means a Group of Institutions upgraded as non-affiliating cluster university in accordance with the norms and standards specified by the National Regulatory Bodies, the Ministry of Education, Government of India;

(12) "Department", "Department of Studies", "Post Graduate Department" and "Department of Post Graduate Studies" mean the Department, Department of Studies, Post Graduate Department and Department of Post Graduate Studies in the University/College/Institution established and maintained by a university or a college or an institution, for academic and research work, or an institution, so notified by the University for this purpose and includes a Centre of Studies and Research;

(13) "Director" means the Director of the Autonomous degree-granting College or other Authorities of the University as specified in relevant Sections of this Act;

(14) "Financial Year" means a period of twelve consecutive months commencing on 1st day of April every year";

(15) The terms "he", "his", "him" in relation to any Officer or person referred to in this Act also mean and include "she", "her", "her";

(16) "Higher Education Commission of India, National Higher Education Regulatory Council, National Accreditation Council, Higher Education Grants Council and General Education Council" mean the Higher Education Commission of India (HECI), National Higher Education Regulatory Council (NHERC), National Accreditation Council (NAC), Higher Education Grants Council (HEGC) and General Education Council (GEC)" established by the Government of India as per the Higher Education Commission of India Act.

(17) "Higher Education Institution (HEI) (University or a College or a Polytechnic)", means a multidisciplinary institution of higher learning that offers certificate, diploma or undergraduate and graduate programmes, with high quality teaching, research, and community engagement, in such fields as Social Sciences, Humanities, Science and Engineering, Commerce and Management, Law, Medicine, Music, and Art. It is established and incorporated or deemed to have been established or incorporated under the provisions of this Act; and includes public, and cluster universities, unitary and special purpose universities;

(18) "Hostel" means a unit of residence for students of the Higher Education Institution or the University maintained or recognized by the University in accordance with the provisions of this Act;

(19) "Karnataka State Higher Education Council (KSHEC)" means the Karnataka State Higher Education Council, established by the State Government by or under the Karnataka State Higher Education Council Act, 2010 (Karnataka Act 26 of 2010);

(20) "New University" means the university established by the State Government by an amendment of this Principal Act."

(21) "Non-Teaching Employee" means the non-teaching staff employed by the University, other than Officers engaged in administrative work;

(22) "Other Backward Classes" means the communities, castes and tribes other than the Scheduled Castes or Scheduled Tribes notified by the State Government from time to time, under Articles 15 (4) and 16 (4) of the Constitution of India;

(23) "Prescribed" means prescribed by rules and regulations or statutes made by the State Government or Board of Governors under this Act;

(24) "Previous University" means the university from which new university is carved out and established;

(25) "Previous Year" means the financial year immediately preceding the assessment year;"

(26) "Principal" means the Head of a College or Institution;

(27) "Pro-Chancellor" means the Pro-Chancellor of the University as specified in Section - 17;

(28) "Pro Vice-Chancellor" means the Pro Vice-Chancellor of the University as specified in Section -21;

(29) "Recognized institution" means an institution of higher learning, research or specialized studies, other than an Affiliated College and recognized as such by the University;

(30) "Regulations" means Regulations made by the Board of Governors under this Act;

(31) "Religious minority" means persons belonging to a religious minority within the meaning of Article 30 of the Constitution of India;

(32) "Research Centre" means a centre within the State established or recognized by the University for the purpose of conducting research;

(33) "Schedule" means Schedules appended to this Act;

(34) “Scheduled Castes” means the Scheduled Castes specified in the Constitution (Scheduled Castes) Order, 1950 made under Article 341 of the Constitution of India;

(35) “Scheduled Tribes” means the Scheduled Tribes specified in the Constitution (Scheduled Tribes) Order, 1950 made under Article 342 of the Constitution of India;

(36) “School” means a School of studies in the University, with a group of departments or centers with similar disciplines grouped together, providing any course of study for admission to the Assessment and Evaluation leading to award of degrees, degrees with honours, postgraduate degrees and other academic distinctions;

(37) "Special Purpose University" means the university established or deemed to have been established or incorporated under this Act for special purpose and for the objects specified in Schedule-II and includes unitary and cluster universities;

(38) “Statutes” means the Statutes of the University made by the Board of Governors under this Act;

(39) “Statutory Regulatory Body” means a Regulatory Body established by an Act of Parliament, for the purpose of regulating professional higher education, such as National Higher Education Regulatory Council, All India Council for Technical Education for technical education and National Council for Teachers Education for teacher education;

(40) “Study Centre” means a centre within the State established and maintained by the University for the purpose of advising, counseling or for rendering any other assistance required by the students in the context of the education;

(41) “Teachers” mean Professors including Honorary/Emeritus/ Adjunct Professors, Associate Professors/Readers, Assistant Professors/ Lecturers;

(42) “University” means a multidisciplinary institution of higher learning that offers undergraduate, postgraduate and Ph.D. programmes with high-quality teaching, research, and community engagement. It allows a spectrum of institutions that range from those that place equal emphasis on teaching and research i.e., Research-intensive Universities, those that place greater emphasis on teaching but still conduct significant research i.e. Teaching-intensive Universities. It is established and incorporated or deemed to have been established or incorporated under the provisions of this Act; and includes public, and cluster universities, unitary and special purpose universities.

(43) “University area” means the area of jurisdiction of a university, specified in Schedule-I;

(44) “University Grants Commission (UGC)” means the University Grants Commission established by the Government of India as per the University Grants Commission Act, 1956 (Central Act 3 of 1956);

(45) “Vice Chancellor” means the Vice Chancellor of the University.

CHAPTER - II
THE UNIVERSITIES

3. Establishment and Incorporation of Universities:- (1) The Universities established under the provisions of Karnataka State Universities Act, 2000, all other Unitary Universities and Autonomous Colleges established under the provisions of the Acts repealed under this Act shall be deemed to have been established and incorporated under this Act, with their territorial jurisdictions and head quarters as provided in Schedule - I.

(2) (i) The Chancellor, the Pro-Chancellor, the Chairperson of the Board of Governors, the Vice Chancellor and the Members of the Board of Governors, and the Academic Senate of each University shall constitute a body corporate to be called by the name of that University specified in sub-section (1), and in the Schedule - I:

Provided that, the Vice–Chancellors of the Universities appointed under the repealed Acts shall continue to hold their posts till the completion of the tenure for which they have been appointed.

(ii) Each such University shall have perpetual succession and a common seal and may, by its name, sue and be sued.

(3) On and from the appointed day the Authorities of the Universities established under Acts repealed under this Act shall be renamed and re-constituted in accordance with the provisions of this Act within six months from the appointed day or on completion of their term whichever is earlier:

Provided that the Academic Council/Academic Senate and Syndicate/ Executive Council/ Board of Governors in the repealed Acts shall be renamed as the Academic Senate and the Board of Governors, respectively. Similarly, the Faculties shall be renamed as the Schools.

(4) The University shall be competent to acquire and hold property, both moveable and immoveable, to lease, sell or otherwise transfer any moveable or immoveable property which may have become vested in or been acquired by it for the purpose of the University and to enter into contract and to do all other things necessary for the purposes of this Act.

(5) The University shall not lease, sell or otherwise transfer any immovable property, which may have become vested in or been acquired by it without obtaining the prior approval of the State Government.

(6) In all suits and other legal proceedings by or against the University, the pleading shall be signed and verified by, and all processes in such suits and proceedings shall be issued to and be served on the Registrar.

4. Vision - A New Forward-looking Vision for Higher Education Institutions in Karnataka: Universities and Colleges:- (1) Education is the single greatest tool for achieving social justice and equality. Its essential goal is critical for achieving an inclusive and equitable society in which every citizen has the opportunity to dream, thrive, and contribute to the nation.

(2) As India moves towards becoming a knowledge economy and society, more and more youth are likely to aspire for higher education. Entry into quality higher education can open a vast array of possibilities that can lift both individuals as well as communities out of the cycles of disadvantage. For this reason, making quality higher education opportunities available to all individuals must be among the highest priorities.

(3) A quality higher education must enable personal accomplishment and enlightenment, constructive public engagement, and productive contribution to the society. It must prepare students for more meaningful and satisfying lives and work roles and enable economic independence.

(4) Given the 21st century requirements, quality higher education must aim to develop good, thoughtful, well-rounded, and creative individuals. It must enable an individual to study one or more specialized areas of interest at a deeper level, and also develop character, ethical and constitutional values, intellectual curiosity, scientific temper, creativity, spirit of service, and 21st century capabilities across a range of disciplines including sciences, social sciences, arts, humanities, languages, as well as professional, technical, and vocational subjects.

(5) The National Education Policy envisions an education system rooted in Indian ethos that contributes directly to transforming India, sustainably into an equitable and vibrant knowledge society, by providing high-quality education to all, and thereby making India a global knowledge superpower. The Policy envisages that the curriculum and pedagogy of our institutions must develop among the students a deep sense of respect towards the Fundamental Duties and Constitutional Values, bonding with our country, and a conscious awareness of our roles and responsibilities in a changing world.

(6) The vision of the Policy is to instill among the learners a deep-rooted pride in being Indian, not only in thought, but also in spirit, intellect, and deeds, as well as to develop knowledge, skills, values, and dispositions that support responsible commitment to human rights, sustainable development and living, and global well-being, thereby reflecting a truly global citizen.

(7) This Policy envisions complete overhaul and re-energizing of the higher education system to overcome the challenges and thereby deliver high-quality higher education, with equity and inclusion. Its vision includes the following key changes to the current system:

(a) moving towards a higher educational system consisting of large, multidisciplinary universities and colleges, with at least one in or near every district, and with more Higher Education Institutions across India that offer medium of instruction or programmes in local/ Indian languages;

(b) moving towards a more multidisciplinary undergraduate education;

(c) moving towards faculty and institutional autonomy;

(d) revamping curriculum, pedagogy, assessment, and student support for enhanced student experiences;

(e) reaffirming the integrity of faculty and institutional leadership positions through merit-appointments and career progression based on teaching, research, and

service;

(f) establishment of a National Research Foundation to fund outstanding peer-reviewed research and to actively seed research in universities and colleges;

(g) governance of HEIs by highly qualified independent boards having academic and administrative autonomy;

(h) "light but tight" regulation by a single regulator for higher education;

(i) increased access, equity, and inclusion through a range of measures, including greater opportunities for outstanding public education; scholarships by private/philanthropic universities for disadvantaged and underprivileged students; online education, and Open Distance Learning (ODL); and all infrastructure and learning materials accessible and available to learners with disabilities.

(8) Transforming the Governance of Higher Education System:-

(a) Regulation of higher education has been heavy-handed for decades with concentrations of power within a few bodies, conflicts of interest among these bodies, resulting in lack of accountability. It is therefore necessary to overhaul the regulatory system in order to re-energize the higher education sector and enable it to thrive.

(b) It is to create checks-and-balances in the system, minimize conflicts of interest, and eliminate concentrations of power.

(c) It is the effective governance and leadership that enables the creation of a culture of excellence and innovation in HEIs.

(d) The common feature of all world-class institutions globally including India has been the existence of strong self-governance and outstanding merit-based appointments of institutional leaders.

5. **Objects of the Higher Education Institutions - Universities/ Degree Granting Autonomous Colleges (ACs):-** The objects of every University/AC other than special purpose universities shall be to, -

(1) formulate goals and responsibilities of general, vocational and professional education in the service of society and the nation;

(2) expand the institutional base by creating additional capacity in existing institutions and establishing new institutions, in order to enhance Gross Enrollment Ratio.

(3) to improve equity in higher education by providing cost effective higher education and adequate opportunities to improve the social and economic conditions and welfare of the people, their intellectual, academic and cultural development;

(4) disseminate and advance knowledge by providing instructional and research facilities in such branches of learning as it may deem fit;

(5) make provisions for integrated programmes in arts, humanities, social sciences, science, engineering and technology, law, education, agriculture, medical and allied

sciences, and such other branches of learning;

(6) provide innovative system of university level education, flexible and open with regard to methods and places of learning, combination of courses, eligibility for enrolment, age of entry, conduct of Assessment and Evaluations and operation of programmes with a view to promoting access and equity in higher learning, and to encourage excellence in the new fields of knowledge and to provide special emphasis on both academic and application oriented learning;

(7) institute degrees, diplomas, PG diplomas, certificates, dual degrees, integrated/interdisciplinary degree programs, and other academic distinctions like award of credits on the basis of (a) successful completion of academic work evaluated through multiple methods including modern methods of assessment; (b) outstanding contributions like writing original book/s, research publications, services in the cultural areas and (c) bring out Research journals of high standard through the University Departments;

(8) take appropriate measures for promoting innovation in teaching and learning and inter-disciplinary studies, and to advance the frontiers of knowledge by research, invention, innovation and product development;

(9) educate and train manpower for the development of the Country by undertaking programmes for development and training of faculty and researchers of the University/HEI in partnership with any other university/institution of quality with prior approval of the State Government;

(10) establish linkages with industries for the promotion of science and technology;

(11) derive benefits from the ever growing scientific and technological knowledge in different parts of the world;

(12) take all the necessary steps through both the formal and non-formal educational routes to prepare a healthy, skilled and knowledgeable human resource of international standards in the State, to meet the requirements of the employment sector/labour market, the society, and challenges of development in the State, the Nation and abroad;

(13) develop abilities for entrepreneurship among the youth;

(14) contribute to smooth and effective transfer of technology to the production agencies;

(15) serve as a platform for communication, collaboration and co-operation that will optimize scarce resources;

(16) undertake necessary or expedient action to pursue and promote the objectives of the university as a non-profit organization;

(17) promote national integration and the integrated development of human personality through its policies and programmes;

(18) combine the best in traditional systems with the new opportunities for knowledge enhancement;

(19) develop in the youth sensitivity to environment and inculcate a consciousness of the

real problems and social needs;

(20) take all such educational and research initiatives with a view to enhance the prestige of the State as a leader in higher education:

Provided that in respect of some Special purpose Unitary Universities specific objects shall be as specified in Schedule II.

6. Powers and Functions of Higher Education Institutions.- Subject to the provisions of this Act and such conditions as may be provided by the Statutes and/or Regulations, the Universities and Colleges shall have the following powers and shall perform the following functions and duties, namely:

(1) to provide for instruction, teaching, training and research in such branches of learning and courses of study relevant to the needs of the society and nation and make provisions for creation, dissemination and advancement of knowledge and research, as well as for extension;

(2) to provide for the maintenance of quality, standard, and relevance of teaching-learning, evaluation, research and extension activities;

(3) to provide for the requirements for admission of students to various programmes, conduct courses, research work and other academic activities on the campus and at the Affiliated/ Constituent Colleges, hold Assessment and Evaluations, grant and confer degrees, diplomas or other academic distinctions on persons who have,-

(a) pursued a course of study in the University or in any College, unless exempted therefrom in the manner provided by the Statutes and Regulations and have passed the Assessment and Evaluations provided by the Statutes and Regulations;

(b) carry out research under the conditions provided by the Statutes and Regulations.

(4) to confer honorary degrees or other distinctions on persons in the manner laid down by the Statutes;

(5) to grant diplomas and provide for such lectures and instructions for persons who are not regular students of the University, as the University may determine;

(6) to cooperate or collaborate with other Universities and their Authorities in such manner and for such purposes as the University may from time to time determine;

(7) to institute Professorships, Associate Professorships or Assistant Professorships and any other teaching/research positions required by the University and make appointments thereto and suspend or abolish any of the teaching positions;

(8) to create administrative, ministerial and other necessary non-teaching posts through the Statutes and make appointments thereto and suspend or abolish them;

(9) to institute and award fellowships, travelling fellowships, scholarships, studentships, stipends, medals and prizes;

(10) to establish, maintain and administer Schools, Departments, Colleges, Laboratories, Libraries, Museums, Printing Presses, Institutes of Research, Academic and Administrative training and such other institutions necessary to carry out the objects

of the University;

(11) to establish, maintain and administer hostels;

(12) to supervise and control the residence and discipline of students of the University;

(13) to lay down conditions of service of all categories of employees, including their code of conduct;

(14) to regulate and enforce discipline among the students and the employees and to take such disciplinary measures in this regard as may be deemed by the University to be necessary;

(15) to make arrangements for promoting the health and general welfare of the employees and students of the University;

(16) to fix, collect, demand and revise fees and other charges as may be provided by the Statutes;

(17) to make special arrangements in respect of residence, discipline and teaching of women students and persons belonging to the Scheduled Castes, and Scheduled Tribes, other Backward Classes, and the Differently Abled Category;

(18) to accept, hold and manage endowments, donations or funds which may become vested in the University for the purpose of the University by grant, testamentary disposition or otherwise and invest such endowments, donations or funds in any manner that may be deemed fit:

Provided that, donations from a foreign country, foreign foundation in such country shall be accepted by the University save with the approval of the State Government:

Provided further that, donations, endowments, funds from Non-Resident Indians or University Alumni shall be accepted by the University under intimation to the Government;

(19) to undertake publication of research and general knowledge;

(20) to organize, recognize, regulate and control University Associations pertaining to the employees and the students;

(21) to maintain such Bodies established by the Statutes as Authorities of the Universities;

(22) to admit educational institutions not maintained by the University to the privileges of the University as affiliated Colleges by framing appropriate norms, standards and Statutes for this purpose;

(23) to promote and grant institutional autonomy to the Departments and the affiliated Colleges with sufficient safeguards introduced, to enable them to continuously build upon their strengths and attain higher levels of academic achievements, by framing appropriate Statutes for this purpose based on the UGC Guidelines or Regulations issued in this behalf from time to time;

(24) to provide grants from the funds of the University for the welfare of faculty, staff and students: (a) Students' Associations; (b) Sports, cultural activities etc. and in furtherance of these, permitting creation of Athletic and other Clubs.

(25) to provide through its professors and other teachers and the Departments and special research Institutes, such teaching and guidance as the Affiliated Colleges may require;

(26) to recognize for any purpose, either in whole or in part, any institution on such terms and conditions as may, from time to time, be provided by Statutes and to withdraw such recognition;

(27) to perform an advisory role in integrating and optimizing different sectors of education in the State like, primary and secondary;

(28) to take up continuing and non-formal education as well as sponsored projects for the benefit of society as a whole; and

(29) to do such other acts and things, whether incidental to the powers aforesaid or not, as may be required in order to further the objects of the University, in particular and generally to cultivate and promote arts, science, commerce, education, engineering, technology, management, and such other branches of learning and culture:

Provided that the special purpose unitary universities shall have objects as specified in Schedule-II, until such time they get transformed into multidisciplinary universities.

7. **Institutional Restructuring and Consolidation of HEIs:-** The vision of higher education requires a new conceptual perception of what constitutes a HEI (an university or a college).

(1) The main thrust of NEP-2020 regarding higher education is to end the fragmentation of higher education by transforming HEIs into large multidisciplinary universities, colleges, and HEI clusters/ Knowledge Hubs, each of which with 3,000 or more students. It is to build vibrant communities of scholars and peers, break down harmful silos, enable students to become well-rounded across disciplines, develop active research communities and improve resource efficiency across HEIs.

(2) The Higher Education Institutions be classified into -

(i) Research-intensive Universities (RIUs) – those place equal emphasis on teaching and research;

(ii) Teaching-intensive Universities (TIUs)–those place greater emphasis on teaching but still conduct significant research;

(iii) Autonomous degree-granting Colleges (ACs) - those grant undergraduate degrees and primarily focus on undergraduate teaching, though they are not restricted to that and they are smaller than a typical university.

(a) The three broad types of institutions are not a rigid, exclusionary categorization, but are along a continuum. HEIs will have the autonomy and freedom to move gradually from one category to another, based on their plans, actions, and effectiveness. The most salient marker for these

categories of institutions will be the focus of their goals and work. Accreditation System will develop appropriate norms for this purpose.

(b) A stage-wise mechanism for granting graded autonomy to colleges, through transparent system of graded accreditation will be established. The Colleges shall be encouraged, mentored, supported, and incentivized to gradually attain the minimum benchmarks required for each level of accreditation. Over a period of time, every college should develop into either an Autonomous degree-granting College, or become a constituent college of a university. ACs with appropriate accreditations can evolve into RIU or TIUs.

(c) In addition to teaching and research, HEIs shall support other HEIs (through appropriate resourcing, incentives, and structures) in their development, community engagement and service, faculty development and school education.

(d) By 2040, all HEIs have to become multidisciplinary institutions and have larger student enrolments, with 3,000 or more students for optimal use of infrastructure and resources. All HEIs shall first plan to become multidisciplinary and then gradually increase student strength to the desired levels.

(e) More HEIs have to be established and developed in underserved regions to ensure full access, equity, and inclusion. By 2030, there shall be at least one large multidisciplinary HEI in or near every district. Steps shall also be taken towards developing high-quality higher education institutions both public and private that have medium of instruction in local language or bilingually. The aim is to increase the Gross Enrolment Ratio in higher education including vocational education to 50% by 2035. Apart from developing new institutions to attain these goals, a large part of the capacity building shall be achieved by consolidating, expanding, and improving the existing HEIs.

(f) Growth shall be in both public and private institutions, with a strong emphasis on developing a large number of outstanding public institutions. Public funding shall be increased to support public HEIs. It is to give an equitable opportunity for all public institutions to grow and develop. It shall be based on transparent, pre-announced criteria from within the accreditation norms of the Accreditation System. HEIs delivering the highest quality education shall be incentivized to expand their capacity.

(g) If the HEIs are accredited to run Open Distance Learning (ODL) and online programmes, they shall be allowed to do so, to enhance their offerings, improve access, increase GER, and provide opportunities for lifelong learning (Sustainable Development Goal (SDG)-4)

(h) All ODL programmes and their components leading to diploma or degree shall be of standards and quality equivalent to the highest quality

programmes offered by the HEIs on their campuses. Top HEIs accredited for ODL shall be encouraged and supported to develop high-quality online courses, which shall be integrated into curricula of HEIs, and blended mode shall be preferred.

(i) To enable and encourage high-quality multidisciplinary and cross-disciplinary teaching and research across fields, all HEIs shall move towards becoming vibrant multidisciplinary institutions or parts of vibrant multidisciplinary HEI clusters. Single-stream HEIs shall be phased out over time by adding departments across different fields to become multidisciplinary institutions.

(j) Through the attainment of suitable accreditations, all HEIs shall gradually move towards full autonomy, both academic and administrative. The autonomy of public institutions shall be backed by adequate public financial support and stability. Private institutions with a public-spirited commitment to high-quality equitable education shall also be encouraged.

(k) To foster the overall culture of empowerment and autonomy to innovate, the system of "affiliated colleges" shall be phased out over a period of fifteen years through a system of graded autonomy.

(l) Each existing affiliating university shall be responsible for mentoring its affiliated colleges so that they can develop their capabilities and achieve minimum benchmarks in academic and curricular matters; teaching and assessment; governance reforms; financial robustness; and administrative efficiency.

(m) All colleges currently affiliated to a university shall attain the required benchmarks over time to secure the prescribed accreditation benchmarks to become eventually degree-granting autonomous colleges. This shall be achieved through a concerted national effort through mentoring and governmental support.

(n) The overall higher education sector shall transform into an integrated higher education system, including professional and vocational education. All HEIs across all current streams shall eventually merge into one coherent ecosystem of higher education.

(o) Since university means, worldwide, a multidisciplinary institution of higher learning that offers undergraduate, graduate, and Ph.D. programmes, and engages in high-quality teaching and research, the present complex nomenclature of HEIs such as 'deemed to be university', 'affiliating university', 'affiliating technical university', 'unitary university' shall be replaced simply by 'university' on fulfilling the criteria as per norms.

8. Jurisdiction, Admission to Privileges, etc:- The Universities established or deemed to have been established under this Act shall have State-wide jurisdiction in Karnataka for admission of students..

Provided that 50 percentage of the admissions in all courses of the University shall be reserved for the students of the respective Universities, Constituent Colleges and their affiliated Colleges.

9. Teaching and Research in the Universities:- (1) Subject to the control of the Academic Senate, all recognized teaching in connection with each University/ACs' courses shall be conducted by the Teachers of the University concerned in accordance with the syllabus prescribed by Regulations and shall include lecturing, tutorials, laboratory work, project work, internship, mentoring, guiding and other teaching methods.

(2) All such teaching shall be organized by such authorities as may be provided by the Regulations or the Statutes.

(3) The courses and curricula shall be as may be provided by the Regulations;

(4) The teachers in the University/AC, Departments and Affiliated/ Constituent Colleges shall conduct and guide research to keep abreast of the emerging knowledge development.

(5) Eligible teachers from Affiliated/Constituent Colleges may be recognized as research guides on individual basis apart from recognizing the eligible Department/Colleges as Research Centres. The rules and procedure for such recognitions shall be as provided by the Statutes or Regulations.

(6) Towards a More Holistic and Multidisciplinary Education:

(a) India has a long tradition of holistic and multidisciplinary learning, combining subjects across fields. The very idea that all branches of creative human endeavor, including mathematics, science, vocational /professional subjects, and soft skills should be considered 'arts', has Indian origins. This notion of a 'knowledge of many arts' or what in modern times is often called the 'liberal arts' (i.e., a liberal notion of the arts) must be brought back to Indian education, to lead the country into the 21st century and the fourth industrial revolution.

(b) The undergraduate education which integrates the humanities and arts with STEM (Science, Technology, Engineering and Mathematics) leads to positive learning outcomes, including increased creativity and innovation, critical thinking and higher-order thinking capacities, problem-solving abilities, teamwork, communication skills, more in-depth learning and mastery of curricula across fields, increases in social and moral awareness, besides general engagement and enjoyment of learning. Research is also improved and enhanced through a holistic and multidisciplinary education approach.

(c) A holistic and multidisciplinary education aims to develop all capacities of human beings - intellectual, aesthetic, social, physical, emotional, and moral in an integrated manner. It will help in developing well-rounded individuals that possess critical 21st century capacities in fields across the arts, humanities, languages, sciences, social sciences, and professional, technical, and vocational fields; an ethic of social engagement; soft skills, such as communication, discussion and debate;

and rigorous specialization in a chosen field/s. Such a holistic education shall be the approach of all undergraduate programmes, including those in professional, technical, and vocational disciplines. Engineering institutions shall also move towards more holistic and multidisciplinary education with more arts and humanities. Students of arts and humanities shall learn more science. and all shall make an effort to incorporate more vocational subjects and soft skills.

(d) Imaginative and flexible curricular structures shall enable creative combinations of disciplines for study, and would offer multiple entry and exit points, removing currently prevalent rigid boundaries and creating new possibilities for life-long learning.

(e) Large multidisciplinary universities and colleges shall facilitate the move towards high-quality holistic and multidisciplinary education. Flexibility in curriculum and novel and engaging course options shall be offered to students, in addition to rigorous specialization in a subject or subjects. This shall be encouraged by increased faculty and institutional autonomy in setting curricula. Pedagogy shall emphasize on communication, discussion, debate, research, and opportunities for cross-disciplinary and interdisciplinary thinking.

(f) Departments in Languages, Literature, Music, Philosophy, Indology, Art, Dance, Theatre, Education, Mathematics, Statistics, Pure and Applied Sciences, Sociology, Economics, Sports, Translation and Interpretation, and other subjects needed for a multidisciplinary shall be established and strengthened at all HEIs.

(g) Credits shall be given in all Bachelor's Degree programmes for these subjects if they are done from such departments or through ODL mode, whenever they are not offered in-class at the HEIs .

(h) The flexible and innovative curricula of all HEIs shall include credit-based courses and projects in the areas of community engagement and service, environmental education, and value-based education.

(i) As part of a holistic education, students at all HEIs shall be provided with opportunities for internships with local industry, businesses, artists, crafts persons, etc., and research internships with faculty and researchers at their or other HEIs/research institutions, to actively engage them with the practical side of their learning and to further improve their employability.

(j) The undergraduate degree may be of either 3 or 4-year duration, with multiple exit options with a certificate after completing 1 year in a discipline or field including vocational and professional areas, or a diploma after 2 years of study, or a Bachelor's degree after a 3-year programme. The 4-year multidisciplinary Bachelor's programme shall be the preferred option as it allows opportunity to experience the full range of holistic and multidisciplinary education.

(k) The Academic Bank of Credit (ABC) established would digitally store the academic credits earned from various recognized HEIs so that the degrees from an HEI can be awarded taking into account credits earned. The 4-year undergraduate programme

may also lead to a degree 'with Research', if the candidate secures a cumulative CGPA of 7.5 and above, in the first three years of UG study.

(l) The Master's degree may be of either one or two years: (a) 1-year Master's programme for those who complete the 4-year Bachelor's programme; (b) 2-year Master's programme for those who complete the 3-year Bachelor's programme with 2nd year devoted entirely to research; and (c) there may be an integrated 5-year Master's programme.

(m) Eligibility for undertaking a Ph.D. shall be either a Master's degree or a 4-year Bachelor's degree with research component.

(n) HEIs shall focus on research and innovation by setting up start-up incubation centres; technology development centres; centres in frontier areas of research; greater industry-academic linkages; and interdisciplinary research including humanities and social sciences.

(o) HEIs shall develop specific hand holding mechanisms and competitions for promoting innovation among student communities.

(7) Promotion of Indian Languages, Arts and Culture:

(a) The preservation and promotion of Indian arts and culture is important for the nation and the individual. Cultural awareness and expression are among the major competencies considered important to develop in children, to provide them with a sense of identity, belonging, and appreciation of other cultures and identities.

(b) It is through the development of a strong sense and knowledge of their own cultural history, arts, languages, and traditions that children can build a positive cultural identity and self-esteem. Thus, cultural awareness and expression are important contributors both to individual as well as societal well-being.

(c) The arts form a major medium for imparting culture. The arts not only strengthen cultural identity, awareness, and uplift societies but also enhance cognitive and creative abilities in individuals and increase individual happiness. Thus, Indian arts of all kinds must be offered to students at all levels of education.

(d) Language is inextricably linked to art and culture. Different languages 'see' the world differently, and the structure of a language. Therefore, language determines a native speaker's perception of experience. Thus, culture is encased in our languages. Art, in the form of literature, plays, music, film, etc. cannot be fully appreciated without language. In order to preserve and promote culture, one must preserve and promote a culture's languages.

(8) Teacher Education:

(a) Teacher education is vital for creating a pool of school teachers that shapes the next generation. Teacher training requires multi-disciplinary perspectives and knowledge, formation of dispositions and values, and development of practice under the best mentors.

(b) Beyond the teaching of cutting-edge pedagogy, the teacher education shall include grounding in languages, sociology, history, science, psychology, early childhood

care and education, foundational literacy, numeracy, Indian knowledge, its values, ethos, art etc.

(c) Teacher education requires multidisciplinary inputs, and education in high-quality content and pedagogy. Thus all teacher education programmes shall be conducted in multidisciplinary institutions.

(d) All stand-alone Teacher Education Institutions (TEIs) shall convert themselves into multidisciplinary institutions by 2030.

(e) All multidisciplinary universities and colleges shall establish, education departments to run B.Ed. programmes and carry out research in various aspects of education.

(f) By 2030, the 4-year integrated B.Ed. degree offered by multi-disciplinary HEIs will be the minimal degree qualification for School Teachers.

(g) All HEIs shall offer 4-year integrated teacher education programmes. The 4-year integrated B.Ed. will be a dual-major holistic Bachelor's degree in Education in a specialized subject such as a language, mathematics, history, economics, physics, chemistry, art, music, physical education, etc.

(h) The HEI offering the 4-year integrated B.Ed. may also run a 2-year B.Ed., for Bachelor's degree holders in a subject/s and 1-year B.Ed. for 4-year undergraduate degree holders in a specialized subject.

(i) To attract outstanding students to the B.Ed. programmes (4-year/ 2-year/1-year), scholarships for meritorious students be offered.

(j) All fresh Ph.D. entrants, irrespective of discipline, shall take credit-based courses in teacher education/pedagogy related to their subjects during the Ph.D. programme. Ph.D. students shall also have some actual teaching experience through teaching assistantships.

(9) Reimagining Vocational Education:

(a) Vocational education is perceived to be inferior to mainstream education and meant largely for students who are unable to cope with the latter. This perception affected the choices students make. Thus NEP-2020 aims to overcome the social status hierarchy associated with vocational education through integration of vocational education programmes into mainstream education at all HEIs.

(b) Thus, quality vocational education shall be integrated into higher education, to ensure that every student learns at least one vocation and is exposed to several more. It is to emphasize the dignity of labour and importance of various vocations.

(c) HEIs have to offer vocational education either on their own or in partnership with industry and NGOs. Focus areas for vocational education shall be chosen based on skills gap analysis and mapping of local opportunities. This is required to realize the full potential of India's demographic dividend.

(d) In addition to B. Voc. Degrees, vocational courses shall be offered to students enrolled in all other Bachelor's degree programmes. The HEIs shall also conduct

short-term certificate courses in various skills including soft skills.

(10) **Professional Education:** Preparation of professionals must involve an education in the ethic and importance of public purpose, an education in the discipline, and an education for practice.

(a) Professional education must centrally involve critical and interdisciplinary thinking, discussion, debate, research, and innovation. To achieve this, professional education shall become an integral part of the overall higher education system.

(b) By 2030, stand-alone technical universities, health science universities, agricultural universities, legal universities, and stand-alone institutions in other fields, shall become multidisciplinary institutions offering holistic and multidisciplinary education.

(c) Agricultural education with allied disciplines shall be revived. Legal education needs to be competitive globally, adopting best practices and embracing new technologies for wider access to and timely delivery of justice.

(d) Healthcare education needs to be re-envisioned so that the duration, structure, and design of the educational programmes need to match the role requirements that graduates will play. Students shall be assessed at regular intervals on well-defined parameters primarily required for working in primary care and in secondary hospitals.

(e) Our healthcare education system must be integrative, meaning that all students of allopathic medical education must have a basic understanding of Ayurveda, Yoga and Naturopathy, Unani, Siddha, and Homeopathy (AYUSH), and vice versa. There shall also be a much greater emphasis on preventive healthcare and community medicine in all forms of healthcare education

(f) Technical education includes degree and diploma programmes in engineering, technology, management, architecture, town planning, pharmacy, hotel management, catering technology etc. There will be a greater demand for well-qualified manpower in these sectors as they are critical to nation's overall development. Training of qualified manpower and to drive innovation and research in these fields require closer collaborations between industry and HEIs.

(g) Thus technical education shall be offered within multidisciplinary education institutions and programmes engaging deeply with other disciplines. It is to prepare professionals in cutting-edge areas that are fast gaining prominence, such as Artificial Intelligence (AI), 3-D machining, big data analysis, and machine learning, in addition to genomic studies, biotechnology, nanotechnology, neuroscience, with important applications to health, environment, and sustainable living. These are to be woven into undergraduate education for enhancing the employability of the youth.

(11) Adult Education and Lifelong Learning:

(a) The opportunity to attain foundational literacy, obtain an education, and pursue a livelihood must be viewed as basic rights of every citizen. Literacy and basic education open up whole new worlds of personal, civic, economic, and lifelong-learning opportunities for individuals that enable them to progress personally and professionally. Further literacy and basic education are powerful force multipliers which greatly enhance the success of all other developmental efforts. Worldwide data on nations indicate extremely high correlations between literacy rates and per capita GDP.

(b) A non-literate citizen has innumerable disadvantages and therefore, there shall be strong and innovative initiatives for adult education. In particular, to facilitate community involvement, the smooth and beneficial integration of technology are necessary to achieve 100% literacy.

(c) Suitable infrastructure shall be ensured so that all interested adults will have access to adult education and lifelong learning.

(d) A key initiative in this direction will be to use schools after school hours and on weekends, as Adult Education Centres (AECs). HEIs, vocational training centres etc. can also be used as AECs.

(12) Research and Innovation:

(a) Knowledge creation and research are critical in growing and sustaining a large and vibrant economy, uplifting society, and continuously inspiring a nation to achieve even greater heights.

(b) A robust ecosystem of research is more important than ever with the rapid changes occurring in the world today, e.g., in the realm of climate change, population dynamics and management, biotechnology, an expanding digital marketplace, and the rise of machine learning and artificial intelligence.

(c) Research and innovation at HEIs in India is critical. The best teaching and learning processes at the higher education level occur in environments of a strong culture of research and knowledge creation. Much of the very best research in the world has occurred in multidisciplinary university settings.

(d) NEP envisions a comprehensive approach to transform the quality and quantity of research in India. It includes the establishment of a National Research Foundation (NRF), to enable a culture of research to permeate through universities. It is to fund competitive, peer-reviewed grant proposals of all types and across all disciplines; seed, grow, and facilitate research at universities and colleges.

(13) Technology Use and Integration:

(a) India is a global leader in information and communication technology and in other cutting-edge domains, such as space. The Digital India Campaign is helping to transform the entire nation into a digitally empowered society and knowledge economy.

(b) While education plays a critical role in this transformation, technology itself plays an important role in the improvement of educational processes and outcomes. Thus, the relationship between technology and education at all levels is bi-directional.

(c) New technologies involving artificial intelligence, machine learning, block chains, smart boards, handheld computing devices, adaptive computer testing for student development, and other forms of educational software and hardware will change what students learn in the classroom as well as how they learn.

(d) Thus, the use and integration of technology to improve multiple aspects of education shall be supported and adopted. The existing digital platforms and ongoing ICT-based educational initiatives must be utilized to meet the current and future challenges in providing quality education for all.

10. Optimal Learning Environments and Support for Students:-

(1) The curriculum, pedagogy, continuous assessment and student support are the cornerstones for quality learning. Thus, all HEIs shall be equipped with the basic infrastructure and facilities to ensure engaging and supportive learning environments. They shall include quality libraries, labs, classrooms, sports, discussion spaces, clean drinking water, working toilets, recreation and dining areas. Every classroom shall have access to the latest educational technology that enables better learning experiences.

(2) The curriculum must be interesting and relevant, and updated regularly to align with the latest knowledge requirements and to meet specified learning outcomes. High-quality pedagogy shall be used to successfully impart the curricular material to students as the pedagogical practices determine the learning outcomes. The scientific assessment methods designed to continuously improve learning and test the application of knowledge shall be used. The capacities that promote student wellness such as fitness, good health, psycho-social well-being, and sound ethical grounding, critical for high-quality learning shall be developed.

(3) To promote creativity, HEIs and faculty shall be given autonomy to innovate curriculum, pedagogy and assessment within a broad framework of higher education qualifications to ensure consistency across institutions and programmes, and across ODL, online, and traditional 'in-class' modes. Curriculum and pedagogy shall be designed to ensure a stimulating and engaging learning experience. Continuous formative assessment shall be used to further the goals of each programme.

(4) HEIs shall use a criterion-based grading system to assess student achievement based on learning goals of programmes, making the system fairer and outcomes more comparable. HEIs shall also move towards continuous and comprehensive evaluation from high-stakes Assessment and Evaluations.

(5) Every HEI shall integrate its academic plans ranging from curricular improvement to quality of classroom transaction - into its larger Institutional Development Plan (IDP). Every HEI shall be committed to the holistic development of students and

create strong internal support systems both inside and outside formal academic interactions in the classroom. Faculty shall be trained to train students not just as teachers, but also as mentors and guides.

(6) The students from SED backgrounds shall be encouraged and supported to make a successful transition to higher education. HEIs shall set up high-quality support centres and give adequate funds and academic resources to carry out this effectively. Every institution shall provide professional, academic and career counselling to all students through counsellors to ensure physical, psychological and emotional well-being.

(7) ODL and online education provide a natural path to increase access to quality higher education. To leverage its potential completely, ODL shall be expanded while ensuring adherence to standards of quality.

(8) All programmes, courses, curricula and pedagogy across subjects, including those in-class, online, and in ODL modes, and student support shall aim to achieve global standards of quality.

(9) **Student Activity and Participation:** Vibrant campus life is essential for high-quality teaching-learning processes. Thus, the primary stake-holder students shall be given opportunities for participation in sports, culture/arts clubs, eco-clubs, activity clubs, community service projects, etc. In every HEI, there shall be counselling systems for handling stress and emotional aspects. Further, a system shall be created to provide the requisite support to students from rural backgrounds, including increasing hostel and medical facilities.

(10) **Financial support for students:** The Governments and HEIs shall strive to provide financial assistance to students through various measures, including incentivizing the merit of students belonging to SC, ST, OBC, and other SEDGs.

(11) **Internationalization:** The courses and programmes in subjects, such as Indology, Indian languages, AYUSH systems of medicine, yoga, arts, music, history, culture, and modern India, internationally relevant curricula in the sciences, social sciences etc., and quality residential facilities and on-campus support etc. shall be fostered to attain the goal of global quality standards, attract greater numbers of international students, and achieve the goal of 'internationalization at home'. An International Students Office at HEI hosting foreign students be set up to deal with matters relating to them.

(12) The mutually beneficial MOUs with high-quality foreign HEIs may be signed, facilitating research/ teaching collaborations with faculty/ student exchanges. Credits acquired in foreign HEIs may be permitted, as per the requirements of each HEI, to count for the award of a degree.

11. University Open to all Classes of Persons.-

(1) The University shall be open to all persons irrespective of sex, race, creed, caste or class.

Provided that it shall not be lawful for the University to impose on any person any test whatsoever of religious belief or profession in order to entitle him to be admitted thereto as a teacher or a student or to hold any office therein or to graduate thereat or to enjoy or exercise any privilege thereof.

(2) Subject to the provisions of sub-section (1), each University shall, in accordance with any special or general orders of the State Government, reserve seats for the purpose of admission as students in any College or Institution maintained or controlled by the University for the following classes of persons, namely, the Scheduled Castes and the Scheduled Tribes; Other Backward Classes; Religious and Linguistic Minorities; Nominees of the Central or State Governments; Defence personnel, ex-servicemen and their children; Women, transgender, and Persons with disabilities as defined in the Rights of Persons with Disabilities Act, 2016.

(3) The University may, subject to the orders of the State Government from time to time, grant exemption from payment of fees or boarding, lodging or any other charges or provide special scholarships to students belonging to classes listed in sub-section (2).

12. **Motivated, Energized, and Capable Faculty: -**The success of HEIs depends on the quality and engagement of its faculty. The factors that affect low faculty motivation levels shall be addressed to ensure that they remain enthusiastic, engaged and motivated for advancing students, institution and the profession.

(1) Teaching duties shall not be excessive, and student-teacher ratios not too high, so that the activity of teaching remains pleasant and there is adequate time for interaction with students, conducting research, and other university activities. Faculty shall be appointed to individual institutions and generally not be transferable across institutions so that they may feel truly invested in, connected to, and committed to their institution and community.

(2) Faculty shall be given the freedom to design their own curricular and pedagogical approaches within the approved framework, including assessments. Empowering them to conduct innovative teaching, research, and service as they see best will be a key motivator and enabler for doing truly outstanding, creative work.

(3) Excellence shall be incentivized through rewards, promotions, recognitions, and movement into institutional leadership. Further, the faculty not delivering on basic norms shall be held accountable.

(4) HEIs shall have clearly defined, independent, and transparent processes and criteria for faculty recruitment. There shall be a fast-track promotion system for recognizing high impact research and contribution. A system of multiple parameters for proper performance assessment, shall be developed by HEIs.

(5) Outstanding and effective institutional leadership is essential for the success of an institution and its faculty. Thus, the outstanding and enthusiastic institutional leaders are needed to cultivate excellence and innovation. Excellent faculty with high academic and service credentials, who demonstrated leadership and management

skills shall be identified early and trained through a ladder of leadership positions.

(6) Leadership positions shall not remain vacant, but rather an overlapping time period during transitions in leadership shall be the norm to ensure the smooth running of institutions. Institutional leaders shall create a culture of excellence which motivate and incentivize outstanding & innovative teaching, research, institutional service, and community outreach from the faculty and HEI leaders.

13. Discipline, Inspection and Control:- The Board of Governors shall furnish such returns, statements, accounts or other particulars relating to the administration of the University as the Chancellor may, from time to time, require. The Chancellor may on the recommendation of the State Government cause an inspection to be made by a Commission of Inquiry consisting of one or more persons as he may direct, of the Buildings, Laboratories, Libraries, Museums, Workshops and Equipment of any institution maintained, administered, recognized or approved by the University and also of the Assessment and Evaluations, teaching and other work conducted or done by the University and inquire into any specific allegations against any employee of the University in like manner in respect of any matter connected with or ancillary thereto, as per rules framed by the Government.

14. Powers of the Chancellor and the State Government:-

(1) The Chancellor Suo moto or on the recommendation of the State Government may issue such directions as may be necessary or expedient in the interest of both the administration and the academic functioning of a university, and, in particular, to ensure peace and tranquility on its campus and to protect the property and finances of the University.

(2) The State Government shall also have the following powers:

(i) to recommend to the Chancellor for constitution of the first Board of Governors and the first Academic Senate of the University;

(ii) to recommend to the Chancellor for appointment of the Chairperson of the Board of Governors in accordance with Section 18;

(iii) to provide required funds to the University;

(iv) to determine the application and spending of moneys by the University.

CHAPTER - III

OFFICERS OF THE STATE PUBLIC UNIVERSITIES

15. Officers of the Universities:- The following shall be the Officers of each University, namely-

(a) the Chancellor;

(b) the Pro-Chancellor;

(c) the Chairperson of the Board of Governors;

(d) the Vice Chancellor;

(e) the Pro-Vice Chancellor;

(f) the Deans of Schools;

(g) the Registrar;

(h) the Registrar (Assessment & Evaluation);

(i) the Finance Officer;

(j) Other Officers of the University such as Director of Planning, Monitoring and Evaluation Board; Director of Research, Innovation and Consultancy Board; Director of Students Welfare; Director of Internal Quality and Assurance Cell; Director of Physical Education and Sports; Librarian as per the provisions of this Act and such other Officers of the University as may be designated by the Board of Governors as per Statutes of the respective University.

16. The Chancellor: -

(1) The Governor of Karnataka shall by virtue of his Office, be the Chancellor of each University/HEI.

(2) The Chancellor shall be the Head of each University/HEI and shall preside at Convocation of the University, when present.

(3) The Chancellor shall appoint the Chairperson and other members of the first Board of Governors of the University, on the recommendation of the State Government.

(4) The Chancellor on his own or on the recommendation of the State Government shall have the power to direct the Chairperson of the Board of Governors or the Vice Chancellor to convene the meeting of any Authority of the University for specific purposes whenever necessary and the Chairperson of the Board or the Vice Chancellor shall comply with such direction and forward the Minutes of such meeting to the Chancellor.

(5) The Chancellor in consultation with the State Government shall call for such information and records relating to the affairs of a University and issue such direction thereupon as he may deem fit in the interest of the University and the Authorities and the Officers of the University shall comply with such direction.

(6) Where in the opinion of the Chancellor the conduct of any elected or nominated or appointed or co-opted Member is detrimental to the smooth functioning of the

University or any Authority or Body or Committee, he may, after giving such Member an opportunity to offer explanation in writing and after considering such explanation, if any, and satisfying that it is necessary so to suspend or disqualify such Member for such period as he may deem fit, in consultation with the State Government.

(7) The Chancellor shall have such other powers as may be conferred on him by or under this Act.

17. The Pro-Chancellor:-

(1) The Minister in charge of Higher Education in Karnataka shall by virtue of Office held by him, be the Pro-Chancellor of each University.

(2) The Pro-Chancellor shall, in the absence of the Chancellor, when present, shall preside at Convocation of the University.

18. The Chairperson of the Board of Governors, his Powers and Functions:-

(1) The Chairperson will not be a whole time Officer of the University.

(2) The Chairperson shall be a person of eminence with demonstrated administrative and leadership capabilities along with abilities to manage complex situations. Since the Chairperson has to serve as the liaison between the Board and the University, he must be person of many skills such as interpersonal and communication skills. He shall be competent to set the tone and culture for the entire board, so that the Members arrive on time at board meetings fully prepared and ready to participate actively in the discussions.

(3) The Chairperson along with the Vice-Chancellor shall define the Board's responsibilities and set the strategic direction for the University. He shall be able to draw out varied perspectives from the Members, and not allow any one Member to monopolize discussions. He shall mentor the Board members and build awareness of educational opportunities for building better boards.

(4) The Chairperson of the BoG shall be appointed by the Chancellor from a panel of three persons suggested by the Board of Governors and recommended by the State Government, from amongst the persons of eminence as stated in sub-section (2);

Provided that if the Chancellor does not approve of any of the persons so recommended, he may call for fresh recommendations from the Board of Governors.

(5) The Chairperson shall preside at the Convocations of the University, in the absence of both the Chancellor and the Pro-Chancellor.

(6) The Chairperson shall exercise such other powers and perform such other duties as may be assigned to him by this Act, the rules made hereunder, the Statutes or Regulations.

(7) The Chairperson shall hold office for a term of four years:

Provided that notwithstanding the expiry of his term of office, the Chairperson

shall continue to hold office until his successor assumes office.

(8) The Chairperson may, by notice in writing under his hand addressed to the Chancellor, resign from his office.

19. The Vice Chancellor:-

(1) The Vice Chancellor shall be the Chief Executive and Academic Officer of the University and shall provide leadership to the University. He shall exercise general supervision and control over the affairs of the University and give effect to the decisions of all authorities of the University.

(2) The Vice Chancellor shall be a person of the highest level of competence, integrity, morals and institutional commitment, apart from being an eminent academician with strong administrative acumen. He shall fulfill the qualification and experience requirements as prescribed by the UGC or relevant national regulatory authority, in this regard. The Vice-Chancellor must possess leadership qualities in vision, integrity, excellence, accountability and transparency, and autonomy and teamwork, so that he will be able to make everybody in the University to work tirelessly towards a common goal of achieving academic excellence. He must inspire his colleagues, command respect and lead from the front. Since the Vice-Chancellor has to work closely with the Chairperson, he must have excellent interpersonal and communication skills. An excellent relationship between them will repose confidence and positive energy across the Institution. The same is true of the synergy between the Vice-Chancellor and the Registrar.

(3) The Vice Chancellor shall be appointed by the Board of Governors on such terms and conditions of service as may be prescribed.

(4) The Vice Chancellor shall be appointed from out of the panel of names recommended by a Search-cum-Selection Committee constituted by the Board of Governors in the following manner:

(i) The Board of Governors shall constitute a Search-cum-Selection Committee for the appointment of Vice Chancellor at least three months before the expiry of the term of Office of the incumbent Vice Chancellor;

(ii) The Search-cum-Selection Committee shall consist of three Members, each one being an eminent academician, educationist or administrator. One of these Members shall be nominated by the Chancellor on the recommendation of the State Government, one by the Board of Governors and the other by the Academic Senate. The Board of Governors shall appoint one of these Members as the Chairperson of the Search-cum-Selection Committee;

Provided that, the quorum for the meeting shall be the full committee;

Provided further that, such of the Members nominated, who do not respond positively within one month of being communicated of their appointment, shall be automatically replaced by other nominations.

(iii) The Board of Governors shall nominate an officer of the University to be the

Convener of the Search-cum-Selection Committee.

(5) No serving Vice Chancellor in the State or no person presently connected with the affairs of the State Government or the University or any College or Institution affiliated to the University or recognized by it, shall be nominated as a Member of the Search-cum-Selection Committee.

(6) The Search-cum-Selection Committee shall submit to the Board of Governors, within two months from the date of its constitution, a panel of three names of persons fulfilling the requirements under sub-section (2) and are eminent academicians from the field of Arts, Science and Technology, Commerce and Management, Law, Education or other fields. The panel of names shall be arranged in the alphabetical order. The Board of Governors shall, keeping in view merit, equity and social justice, appoint one from out of this panel as the Vice Chancellor of the University:

Provided that, if the Board of Governors is not satisfied with the panel of names recommended by the Search-cum-Selection Committee, it may ask the Search-cum-Selection Committee to make fresh recommendations.

Provided further that, the first Vice Chancellor of the new University established under this Act shall be appointed by the State Government subject to such terms and conditions as may be specified by it.

(7) A person to be appointed as Vice Chancellor shall have clear four years of tenure as Vice Chancellor and shall cease to hold the office on attaining the age of seventy years from the date of assumption of his office.

(8) The Vice Chancellor shall hold the office for a term of four years, from the date of assumption of the office or till he attains the age of seventy years. His services may be continued till the next Vice Chancellor is appointed for a period not exceeding one year, provided he has not attained the age of seventy years. Normally, he shall not be eligible for re-appointment for a second term. In exceptional cases, for established reasons, he may be re-appointed for a second term of two years.

(9) The Vice Chancellor may by notice in writing under his hand addressed to the Chairperson of the Board of Governors, resign his office at any time.

(10) The Board of Governors may remove him from the office of the Vice Chancellor, who,—

(a) has been adjudged as an insolvent; or

(b) has been convicted of an offence which, in the opinion of the Board, involves moral turpitude; or

(c) has become physically or mentally incapable of acting as a Vice Chancellor; or

(d) has acquired such financial or other interest as is likely to affect prejudicially his functions as a Vice Chancellor; or

(e) has so abused his position or so conducted himself as to render his continuance in office prejudicial to the public interest; or

(f) has the history of sexual harassment:

Provided that the Vice Chancellor shall not be removed from office except by a resolution passed by the Board of Governors, on any grounds listed above or refusal to carry out the provisions of this Act or for abuse of the powers vested in him, on consideration of the Report of an Inquiry instituted by it, in which the Vice Chancellor has been informed of the charges against him and given a reasonable opportunity of being heard in respect of those charges.

(g) The Board of Governors shall appoint a person who is or has been a retired Judge as the Inquiry Authority. It shall hold the inquiry after giving an opportunity to make representation by the Vice Chancellor and submit the findings and recommendations to the Board.

(11) Where the post of Vice Chancellor falls vacant on account of any reason, the Board of Governors may appoint the senior-most Professor in the University as the Vice Chancellor in charge till a regular Vice Chancellor is appointed:

Provided that if the senior-most Professor is not willing to hold the post of Vice Chancellor in charge, then the next senior-most willing faculty may be appointed as Vice Chancellor in charge.

(12) The emoluments and other conditions of service of the Vice Chancellor shall be as determined by the Statutes.

20. Powers and Functions of the Vice Chancellor. -

(1) As the Principal Executive and Academic Officer of the University, the Vice Chancellor shall exercise general control over the affairs of the University. He shall exercise all the powers necessary for the maintenance of discipline in the University. He must also address issues such as job placement for graduates, quality of education, and competition with other institutions and online learning programs. The Vice Chancellor along with other officers of the University is responsible for carrying out the strategic plan of the Board of Governors.

(2) The Vice-Chancellor shall be an ex-officio member of the Board of Governors and the Finance Committee, the Chairperson of the Board of Management, Chairperson of the Academic Senate and other Authorities or Bodies of the University as provided by the Statutes or the Regulations. He shall preside at the Convocation of the University in the absence of the Chancellor, the Pro-Chancellor and the Chairperson of the Board of Governors. He shall also preside / attend the meetings of other Authorities or Bodies of the University, and shall be entitled to vote.

(3) He shall ensure that all the provisions of this Act and of the Statutes, and the Regulations of the University are observed and shall have all the powers necessary for that purpose.

(4) He shall perform all such acts as may be necessary to carry out and give effect to the decisions of the Authorities of the university.

(5) He may either himself or through any Officer of the University authorized in writing

by him convene the meetings of the Board of Management, the Academic Senate, and other Authorities or Bodies of the University where he is the Ex-officio Chairperson and shall perform all such acts as may be necessary to carry out and give effect to the decisions of these Authorities.

(6) In case of emergency which, in his opinion requires immediate action, the Vice Chancellor shall take such action as he deems necessary, in consultation with the Chairperson of the Board of Governors and shall at the earliest opportunity thereafter report the action taken to such Authority or Body which in the ordinary course would have dealt with the matter:

Provided that, if the action taken by the Vice Chancellor is not approved by the Authority or the Body concerned, he may refer the matter to the Board of Governors, whose decision thereon shall be final;

Provided also that, the powers vested under this sub-section shall not be exercised to revise the pay scales of university employees or to grant affiliation to a College or a course of instruction;

Provided further that, any person in the service of the University affected by the decision of the Authority or the Body based on the report of the Vice-Chancellor under this sub-section may prefer an appeal to the Chairperson of the Board of Governors within thirty days from the date on which the decision was communicated to him and the decision of the Chairperson of the Board of Governors on such appeal shall be final.

(7) The Vice Chancellor shall exercise such other powers and perform such other duties and functions as may be provided by the Statutes, Regulations of the University or as may be delegated to him by the Chairperson of the Board of Governors or the Board of Governors, as the case may be:

Provided that the State Government may frame rules or the Board may lay down the criteria to be followed by the Vice Chancellor while exercising powers and performing his duties, which shall be evaluated by the Board annually, and if the Board is of the opinion that such criteria has not been followed, then, the Board may, after giving an opportunity of being heard to the Vice Chancellor, initiate action for removal of the Vice Chancellor under Section 19(10).

21. The Pro-Vice Chancellor:- The post of Pro-Vice Chancellor will be there only in Universities with affiliated colleges. He shall look after the affairs of the College Development Council. He shall be appointed by the Board of Governors for a tenure of two years, from out of a panel of three suitable persons recommended by the Vice-Chancellor from among the Professors of a University in the State having a minimum of ten years of experience in that cadre, or Principals of Affiliated or Constituent Colleges of the respective Affiliating University having a minimum of ten years of experience in that cadre and or as Professor. The term may be renewed for a period not exceeding two years and it shall be co-terminus with that of the Vice Chancellor. He shall have such powers, duties and functions as may be provided by the Statutes.

22. The Deans of Schools: - The Dean of a School shall be the Chief Academic Officer of the School concerned. He shall be appointed as follows:

(1) A Professor in each School according to seniority and as per the Statutes shall by rotation, be appointed by the Board of Governors of the University as Dean of the School for a period of two years:

Provided that, if there is no Professor available in a School, the senior most Associate Professor in the school may be appointed as Dean.

Provided further that, if in any School, there is no Professor or an Associate Professor, any other Professor in the related discipline may be appointed to act as the Dean, till a Professor/Associate Professor is appointed in that School.

Provided also that, where no person is available in a School to act as Dean of the School or where the University does not have such a Department of Studies for any School, then a Professor in a related Department of Studies in any Affiliated/Constituent College may be appointed on the basis of seniority to act as the Dean of School.

(2) The Dean shall preside over the meetings of the School concerned at the University.

(3) The Dean shall exercise such other powers and discharge such other functions as may be prescribed by the Statutes.

23. The Registrar: -

(1) The Registrar shall be the whole-time officer of the University and shall be appointed by the Board of Governors for a tenure of three years from out of a panel of three suitable persons recommended by the Vice Chancellor.

(2) The Registrar shall be the ex-officio Secretary of the Board of Governors, Member Secretary of the Academic Senate and the Board of Management and Member of the Finance Committee of the University.

(3) It shall be the duty of the Registrar-

(i) to be the custodian of the records, the common seal and such other property of the University concerned as the Vice Chancellor, or the Board of Governors shall commit to his charge;

(ii) to be responsible to the Vice Chancellor for the proper discharge of his functions;

(iii) to issue notices convening the meetings of the Board of Governors (with the approval of the Chairperson of the Board of Governors), the Board of Management, the Academic Senate or the Schools, the Boards of Studies, and of any Authority or Body of the University concerned (with the approval of the Chairperson of the Board of Governors or the Vice Chancellor) and to keep the Minutes of all such meetings;

(iv) to conduct the official correspondence of the Authorities or the Bodies of which he is the Secretary; and

(v) to supply to the Chancellor, Chairperson of the Board of Governors and to the

State Government copies of the Agenda of the meetings of the Authorities or Bodies of the University concerned as soon as they are issued and the Minutes of the meetings within a month of holding of the meetings.

(4) The Registrar shall exercise such other powers and perform such other duties as may be provided by the Statutes or Regulations and as may be allocated to him from time to time by the Board of Governors or the Vice Chancellor.

(5) The Registrar may be assisted by one or more Deputy and or Assistant Registrars.

24. The Registrar (Assessment & Evaluation): -

(1) The Registrar (Assessment & Evaluation) shall be appointed for a tenure of three years, by the Board of Governors from out of a panel of three persons recommended by the Vice-Chancellor.

(2) The Registrar (Assessment & Evaluation) shall be a Member of the Academic Senate and the Board of Management of the University concerned.

(3) The Registrar (Assessment & Evaluation) shall be in-charge of the assessment and evaluation of students and all other matters incidental thereto and ancillary therewith and shall perform such other duties as may be provided by the Statutes or the Regulations, or as may be allocated to him by the Vice Chancellor.

(4) The Registrar (Assessment & Evaluation) may be assisted by one or more Deputy or Assistant Registrar.

25. The Finance Officer:-

(1) The Finance Officer shall be the whole-time officer of the University appointed by the State Government from among the Officers in the cadre of Joint or Deputy Director of State Accounts Department or an officer of the rank of Deputy Accountant General.

(2) The tenure of appointment of the Finance Officer shall be three years and the emoluments and other terms and conditions of appointment of the Finance Officer shall be as provided in the Statutes.

(3) The Finance Officer shall, subject to the control of the Finance Committee, exercise such powers and perform such duties and functions as may be prescribed by the Statutes or as may be required from time to time by the Board of Governors or the Vice Chancellor. He shall be the ex-officio Member-Secretary of the Finance Committee and an Invitee at the meetings of other Authorities or Bodies of the University as may be required.

26. Arrangement of Work during the Temporary Vacancies in the Offices of the Registrar, the Registrar (Assessment & Evaluation) and the Finance Officer:-

(1) In the event of death, suspension or temporary absence of the Registrar, the Registrar (Assessment & Evaluation) or the Finance Officer, the Vice Chancellor may authorize any other suitable Officer of the University to perform the duties of the Registrar, the Registrar (Assessment & Evaluation) or the Finance Officer, as

the case may be.

(2) Pending the appointment of a suitable Officer to fill the vacancy in the office of the Registrar, the Registrar (Assessment & Evaluation) or the Finance Officer, the Vice-Chancellor may in consultation with the Chairperson of the Board of Governors, authorize any other Officer or a Professor of the University to perform the duties of such vacant post till the new appointment is made. The Vice-Chancellor shall immediately report the action taken by him under this sub-section to the Board of Governors.

27. **The University Librarian:-** The University Librarian shall be appointed by the Board of Governors of the University concerned on the recommendation of the Board of Appointment/ Selection Committee constituted under the provisions of this Act. He shall possess such qualifications and experience, exercise such powers and discharge such duties and functions as may be prescribed by the Statutes. The emoluments and terms and conditions of service of the University Librarian shall be as prescribed by the Statutes in accordance with the National Regulations.

28. **The Director of Physical Education and Sports:-** The Director of Physical Education and Sports shall be appointed by the Board of Governors of the University concerned on the recommendation of the Board of Appointment/ Selection Committee constituted under the provisions of this Act. He shall possess such qualifications and experience, exercise such powers and discharge such duties and functions as may be prescribed by the Statutes. The scale of pay and terms and conditions of service of the Director of Physical Education and Sports shall be as prescribed by the Statute, in accordance with the National Regulations.

29. **The Director of Students' Welfare:-** The Director of Students' Welfare shall be appointed in such manner and on such terms and conditions of service, and have such powers, duties and functions as may be provided by the Statutes.

30. **The Director of Planning, Monitoring and Evaluation Board:-** The Director of Planning, Monitoring and Evaluation Board shall be appointed in such manner and on such terms and conditions of service, and have such powers, duties and functions as may be provided by the Statutes.

31. **The Director of Research, Innovation and Consultancy Board:-** The Director of Research, Innovation and Consultancy shall be appointed in such manner and on such terms and conditions of service, and have such powers, duties and functions as may be provided by the Statutes.

32. **The Director of Internal Quality and Assurance Cell: -** The Director of Internal Quality and Assurance Cell shall be appointed in such manner and on such terms and conditions of service, and have such powers, duties and functions as may be provided by the Statutes.

CHAPTER - IV

AUTHORITIES OF THE STATE PUBLIC UNIVERSITIES

33. Authorities of the Universities:- The following shall be the Authorities of each University, namely:

(a) The Board of Governors;

(b) The Board of Management;

(c) The Academic Senate;

(d) The Finance Committee;

(e) The Boards of Studies;

(f) Such other Bodies as may by Statutes, be declared to be the Authorities of the University, such as the College Development Council; Planning, Monitoring and Evaluation Board; Research, Innovation and Consultancy Board; Internal Quality and Assurance Cell; and Infrastructure Development and Purchase Committee.

34. The Board of Governors:-

(1) The Board of Governors of the university shall be the principal governing body of the University. Its role in governance encompasses many duties and responsibilities. The Board of Governors is responsible for defining the role and mission of the University thereby setting the strategic directions for the University to achieve. It has responsibility for fiduciary oversight and institutional performance. The Board is the final authority for the university business, it will make all appointments including the Vice Chancellor, take all decisions regarding governance and delegate some specific powers and duties to others. The Board shall offer, under the leadership of the Chairperson, advice and counsel to the Vice Chancellor.

(2) The Board shall consist of a group of highly qualified, competent and dedicated persons with proven capabilities and a strong sense of commitment to the institution, who have distinguished themselves in the field of education, science and technology, commerce and industry or such other field or public life and are quite conversant with the university administration.

(3) Members of the Board shall be identified by an expert committee set up by the Board of Governors. All members except the Chairperson and the Ex-officio members are nominated or appointed by the Board of Governors. Equity considerations shall be taken care of while selecting the members.

(4) The expert committee referred to in sub-section (3) shall consist of,-

(i)two nominees of the Board of Governors - one from the present Board and another outside expert;

(ii) one nominee of the State Government not below the rank of a Principal Secretary to Government.

(iii) The BoG shall appoint one of them as the Chairperson of the Committee

(5) The expert committee shall prepare the panel of names under each Sub-Clause and submit it to the Board of Governors. The names suggested shall at least be twice the number of members to be nominated under each Sub-Clause.

(6) The Board of each university shall consist of the following members, namely,

(i) A Chairperson, from amongst eminent persons distinguished in the field of Education, Arts/Design/Humanities, Science/ Technology, Commerce/ Management or such other field or Public Life, appointed by the Chancellor on the recommendation of the Govt.

(ii) The Vice Chancellor of the University — Ex-officio Member;

(iii) One nominee of the State Government from the relevant Department or the State Higher Education Council — Ex-Officio Member.

(iv) Four eminent persons of which one shall belong to SC/ST and one to OBC/ Minorities, who have distinguished themselves in the field of education, Arts/ Design/Humanities, Science, Engineering, Technology, Industry, Commerce, Management, Public Life or such other field. Of the four members, at least one shall be a woman:

Provided that the Members nominated shall have a minimum qualification of Postgraduate degree in the discipline of education, Arts/ Design/ Humanities, Science, engineering/ technology, industry, Commerce/ Management or related fields.

Provided further that, the case of special purpose universities, four persons to be nominated under this sub-section are to be from amongst (a) the persons known for their outstanding contribution in the field of Kannada Literature, History, Culture of Karnataka, Drama, Architecture, Archaeology, Sculpture, Design, Painting, Folklore, Religion, Philosophy, Social Movements and other allied areas, in the case of Kannada University; (b) eminent educationists of Sanskrit or persons of Sanskrit Literary works and awardees or other professions, in the case of Karnataka Samskrita Vishwavidyalaya; (c) eminent folklorists, in the case of Karnataka Janapada Vishwavidyalaya and (d) eminent music and performing artists, educationists or awardees in music and performing arts, in the case of Karnataka Rajya Dr. Gangubai Hangal Sangeeta Mattu Pradarshaka Kalegala Vishwavidyalaya, Mysuru;

(v) one eminent person from commerce and industry, banking, social service, public service or such other fields, who has distinguished himself/herself in the chosen field;

(vi) one eminent person from among the alumni of the university who has distinguished himself in the disciplines of Education, Arts, Science & Technology, Engineering, Industry, Commerce and Management or such other fields;

(vii) two eminent persons from other premier educational institutions, who have distinguished themselves in the field of Education, Arts, Science, Engineering,

Technology, Industry, Commerce, Management or such other fields;

(viii) two Principals of the Affiliated and Constituent Colleges, one from the Government and Constituent Colleges, and one from the Aided and Private Colleges for a period of two years (only in the case of Affiliating Universities);

(ix) one Dean of Schools and one Professor, by rotation for a period of two years;

(7) The Registrar of the University shall be the Secretary of the Board of Governors.

(8) The Chairperson and members of the first Board of Governors shall be appointed by the Chancellor on the recommendation of the State Government.

(9) The Chairperson shall have the power to invite relevant experts, not being members of the Board of Governors, to attend meetings of the Board of Governors and assist the Board of Governors with specific issues of their expertise, but such invitees shall not be entitled to vote at the meeting.

(10) The Board of Governors may nominate persons to fill up any temporary vacancies of members in Clauses (iv), (v), (vi) & (vii) of sub-section (6).

(11) The Chairperson shall preside over the Convocations of the University, in the absence of the Chancellor and the Pro Chancellor.

(12) The Board of Governors shall hold at least four meetings during a year. The duration between two consecutive meetings shall not exceed four months. The Chairman of the Board of Governors may direct convening of special meetings. The Statutes may provide for the rules and procedure for holding Meetings of the Board of Governors.

(13) The Chancellor himself or in consultation with the State Government may, by Order, direct the University to hold the meetings of the Board of Governors to discuss such terms of reference as may be specified and the Chairperson of the Board shall comply with such directions.

(14) The Quorum for all the meetings of the Board of Governors shall be seven members attending and voting at such meeting, including the Chairperson of the Board of Governors and the Vice Chancellor:

(15) Save as otherwise provided, the tenure of office of the members of the Board of Governors, other than the ex-officio members, renewal and removal, etc., shall be three years.

35. Powers, Functions and Responsibilities of the Board of Governors:-

(1) The Board of Governors shall have the powers to manage the academic, administrative and the financial affairs of the University and be responsible for not only the day-to-day functioning of the University, but also for institutional planning and setting vision for academic excellence of the University concerned to achieve its objects.

(2) The BoG or the Board shall have the power to appoint the Vice Chancellor, Pro-Vice Chancellor and make all other appointments as may be provided by the Statutes.

(3) The Board of Governors shall be responsible and accountable to the Government and protect stakeholders interests through transparent self- disclosures of all relevant records. It shall be responsible for meeting all regulatory guidelines. It shall submit Accountability reports annually to the Government, adhering to the Vision and Mission of the University.

(4) Without prejudice to the generality of the foregoing, the Board of Governors of a University shall have the following powers, functions and duties, namely-

(a) to receive, mobilize, acquire, hold, control, administer, manage and regulate the funds and properties of the University concerned to ensure effective utilization of the financial resources and the infrastructure, and for that purpose appoint such agents as it may deem necessary and proper;

(b) to augument resources through Research & Development funding, CSR, alumni, endowment and philanthropy. It is to reduce dependence on Government and move towards self reliance.

(c) to cause to be maintained proper record of the properties and the funds of the University and consider its annual accounts and audit report for the past year and its budget estimates for the next financial year, as put up by the Finance Committee before making recommendations on them to the State Government;

(d) to establish faculties or schools of studies, departments and centres, and initiate programmes and courses of study at the University;

(e) to enter into, vary and cancel contracts on behalf of the University;

(f) to administer and control the colleges, hostels, libraries, laboratories, museums and other institutions established or maintained by the University;

(g) to recognize, regulate, supervise and control the residence and discipline of students of the University within the campus, its annexes and elsewhere to promote their health and wellbeing;

(h) to create faculty positions and other academic posts required for the University, colleges and institutions maintained by the University through statutes, to determine the number of such posts, to specify their duties and conditions of service and take appropriate steps to recruit them as and when necessary, as may be provided by the Statutes or Regulations;

(i) to create administrative, ministerial, technical and other necessary posts through statutes, and to make appointments thereto in the manner as may be provided by the Statutes or Regulations.

(j) to institute fellowships, travelling fellowships, scholarships, teaching/research assistantships, studentships, exhibitions, medals and prizes on the recommendations of the Academic Senate;

(k) to regulate and enforce discipline among all categories of faculty, staff and students within and outside its campuses, as provided by the Statutes or Regulations;

(l) to monitor the performance of the university and its faculty in terms of teaching, research, extension and service activities;

(m) to consider and decide on the recommendations of the Academic Senate on the admission of colleges to affiliation or grant of autonomous status;

(n) to lay down and revise from time to time, the fee structure in respect of tuition, research, Assessment and Evaluation, affiliation, inspection and others, as may be provided by the Statutes;

(o) to conduct University Assessment and Evaluations, as may be provided by the Statutes or Regulations.

(p) to appoint, subject to the provisions of Regulations, examiners and moderators and if necessary to change or to remove them and also to fix their fees, emoluments and travelling and other allowances;

(q) to consider the recommendations of the Academic Senate to confer the honorary degrees, titles or other academic distinctions and forward its decision to the Chancellor;

(r) to constitute, administer, maintain and regulate the working of the Centers for Students' Training and Placement, Publications and Information, Sponsored Research and Consultancy, Intellectual Property Rights, Continuing Education and other innovative activities;

(s) to delegate such of its powers, functions and duties to the Vice-Chancellor as may be provided by the Statutes;

(t) to select a common seal for the University and to provide for its custody and use;

(u) to arrange for the conduct of litigation by or against the University;

(v) to frame, enact, amend or repeal the Statutes;

(w) to approve the Regulations proposed/ made by the Academic Senate.

(x) to exercise such other powers and perform such other functions and duties as may be conferred or imposed upon it by this Act, Statutes, and Regulations:

Provided that, nothing contained in sub-section (3) shall be deemed to confer on the Board of Governors the power to revise the Pay-scales of any of the employees;

(5) No resolution shall be passed or decision be taken by the Board of Governors at their meetings, in respect of any Agenda matters except pursuant to an affirmative vote by the Chairperson in favour of the Agenda matter.

36. The Board of Management:-

(1) The Board of Management shall be the executive body of the University. It shall consist of the following, namely: -

(i) The Vice Chancellor shall be the Chairperson;

(ii) Pro-Vice Chancellor;

(iii) Four members nominated by the Board of Governors, of whom two members of the Board and two from outside the Board for a period of two years;

(iv) The Registrar (Assessment & Evaluation) – Member

(v) The Registrar – Member Secretary;

(2) The Board of Management shall meet at least six times in a year. The duration between the consecutive meetings shall not exceed two months. The quorum for the meeting shall be five, of which at least two from sub-section (1) (iii).

(3) The meetings of the Board of Management shall be chaired by the Vice Chancellor and in the absence of the Vice Chancellor, by the Pro-Vice Chancellor.

(4) In the event of a conflict of opinion in arriving at a decision in the Board of Management, the issue shall be referred to the Chairperson of the Board of Governors and the decision of the Chairperson shall be final and binding on the university.

37. Powers and Functions of the Board of Management:- The Board of Management shall have the following powers and perform the following functions, namely:

(1) It shall be competent to take decisions on behalf of the Board of Governors, subject to the ratification by the Board of Governors at its subsequent meeting:

Provided that in urgent circumstances, the Board of Management may take decisions in matters with policy implications subject to ratification by the Board of Governors in its subsequent meeting;

(2) It shall incur such expenses as are necessary to fulfil the objectives set out in this Act and carry out all decisions taken by the Board of Governors;

(3) It shall present before the Board of Governors the annual academic and financial audit reports of the University for its approval;

(4) It shall have such other powers, functions and duties as may be prescribed by the Statutes.

38. The Academic Senate:-

(1) The Academic Senate shall be the principal academic body of every University. It shall have the following composition, namely: -

(a) The Vice-Chancellor of the University shall be the Chairperson;

(b) The Pro-Vice Chancellor;

(c) Four eminent educationists such as former Principals and Professors, nominated by the Board of Governors for a term of two years from a panel of eminent academicians of whom one shall belong to SC/ST, one to OBC or religious minority. Of the four members, at least one shall be women;

Provided that, four experts to be nominated by the Board of Governors in the case of special purpose universities are known for their outstanding contribution in the fields of (a) Kannada Literature, History, Culture of Karnataka, Drama,

Architecture, Archaeology, Sculpture, Design, Painting, Folklore, Religion, Philosophy, Social Movements and other allied areas (Kannada University); (b) Vocal Music and performing arts Instrumental Music and Musicology (Dr. Gangubai Hanagal Sangeetha Mattu Pradarshaka Kalegala Vishwavidyalaya); (c) folklore (Karnataka Janapada Vishwavidyalaya); and (d) Sanskrit Literature, History, Drama, Architecture, Archaeology, Sculpture, Design, Philosophy, Social Movements, Vedas and other allied areas (Karnataka Samskrita Vishwavidyalaya):

(d) Chairpersons or Presidents of Karnataka Janapada Academy, Karnataka Yakshagana Bayalata Academy, Tulu Academy, Kodava Academy, Kannada Sahitya Parishat and Karnataka Sahitya Academy (Applicable only to Karnataka Janapada Vishwavidyalaya).

(e) Chairpersons/Presidents of Kannada Sahitya Parishat and Karnataka Sahitya Academy (Applicable only to Kannada University)

(f) Four eminent persons from Research and Development, Commerce and Industry, Banking and Finance or any other profession, nominated from a panel of names by the Board of Governors for a term of two years;

(g) Two alumni of the University who have distinguished themselves in the field of education and research, nominated by the Board of Governors from a panel of names, for a term of two years;

(h) Two eminent academicians from other institutions nominated from a panel of names by the Board of Governors for a period of two years;

(i) Deans of all the Schools of Studies and other affairs in the university;

(j) All the Chairpersons of the Boards of Studies/ Coordinators of all the Centres;

(k) 5% of Professors (at least five Professors) of the University by rotation on seniority nominated by the Board of Governors for a period of two years (other than the Deans of Schools and Chairpersons of the BoS);

(l) 5% of younger enterprising faculty, at least two Associate Professors and three Assistant Professors, nominated by the Board of Governors for two years, as per the norms prescribed.

(m) 5% of Principals of Affiliated Colleges (only in the case of affiliating Universities), nominated by the Board of Governors by rotation in the order of seniority, for two years term, at least two each from constituent Colleges (if any), Government Colleges, private aided Colleges, private unaided Colleges and women's Colleges:

(n) The University Librarian;

(o) The Director of Physical Education;

(p) The Director of Students Welfare;

(q) The Director of Planning, Monitoring and Evaluation Board;

(r) The Director of Research, Innovation and Consultancy Board;

(s) The Director of Internal Quality and Assurance Cell;

(t) The Registrar (Assessment & Evaluation);

(u) The Registrar shall be the Member Secretary; and

(v) The Finance Officer on invitation.

(2) Members of the Academic Senate other than the Ex-Officio members shall be identified by the expert Committee constituted under Section-34(4).

(3) The term of office of the nominated non-official members shall be two years from the date of their nomination and of the official members shall be two years or as long as they hold office by virtue of which he is a member.

(4) The Academic Senate shall meet at least three times during an academic year. The period between two consecutive meetings shall not exceed six months. The Vice Chancellor may convene Special Meetings of the Academic Senate, in case of need.

(5) The quorum for the meetings of the Academic Senate shall be one third of its members. The Statutes may provide for procedure for holding the Meetings of the Academic Senate and the Standing Committee.

(6) There shall be a Standing Committee to decide any emergent issues on behalf of the Academic Senate. It shall consist of the Vice Chancellor, Pro-Vice Chancellor, Deans of Schools, the Registrar and the Registrar (Assessment & Evaluation):

Provided that the Minutes of such Meetings of the Standing Committee including the decisions taken are placed before the next immediate meeting of the Academic Senate for ratification.

39. Powers and Functions of the Academic Senate:-

(1) The Academic Senate being the academic body of the University, shall exercise such other powers and perform such other functions as may be conferred upon it, by this Act or the Statutes and the Regulations or by the Board. It shall be responsible for the maintenance of the standards of instruction, education and Assessment and Evaluation of students in the University. It shall also be responsible to generally advise the University on all academic matters;

(2) Without prejudice to the generality of the foregoing and subject to such conditions as may be specified by or under the provisions of this Act, the Academic Senate shall exercise the following powers, functions and duties, namely -

(a) to review from time to time, the broad academic policies and programmes of the University and to suggest measures for improving and developing them further;

(b) to approve new programmes and changes or modifications to the existing programmes;

(c) to design and develop the curriculum content of the academic programmes and courses of study and undertake modifications therein;

(d) to specify the academic calendar, guidelines for Assessment and Evaluation of

students;

(e) to recommend grant of degrees, diplomas and other academic distinctions or titles;

(f) to provide for instruction, teaching and training in such branches of learning and courses of study as may be appropriate for research and for the advancement and dissemination of learning;

(g) to specify the criteria and process for admission to courses or programmes of study offered by the University;

(h) to make proposal for issue of Regulations relating to academic matters;

(I) to make Regulations regarding the courses of study, grant of exemptions from approved courses, the scheme of Assessment and Evaluations and conditions on which the students shall be admitted to degrees, diplomas, certificates or other academic distinctions and for declaration of the academic results of the university;

(j) to establish and maintain departments of research and specialized studies;

(k) to arrange for coordination of studies and of the teaching-learning process in colleges and in recognized institutions;

(l) to formulate schemes for promoting research and other specialized studies and activities within the University, its affiliated colleges and recognized institutions and make suitable provision to undertake this and also to disseminate the results thereof;

(m) to make proposals for allocating subjects to the Schools and to assign its own members to the Schools;

(n) to make proposals for the institution faculty positions required by the University and for prescribing the duties of such posts;

(o) to make proposals for the institution of and award of fellowships, travelling fellowships, scholarships, assistantships, studentships or exhibitions;

(p) to make Regulations prescribing equivalence of Assessments/ Degrees;

(q) to amend or repeal any Regulations;

(r) to nominate members to the various Authorities of the University as required;

(s) to advise the university on all academic matters;

(t) to constitute sub-committees, expert committees for academic purposes of the University; and

(u) to exercise such other powers and perform such other functions and duties as may be conferred or imposed on it by this Act, the Statutes or Regulations made thereunder.

40. The Finance Committee:-

(1) The Finance Committee of each University shall have the following composition, namely: -

(a) The Chairperson of the Board of Governors;

(b) The Vice-Chancellor;

(c) The Principal Secretary to the Government, Finance Department or his nominee not below the rank of Deputy Secretary;

(d) One expert in finance or accounting service nominated by the Board of Governors;

(e) One Member each from the Board of Governors and the Academic Senate nominated by the respective Bodies;

(f) The Registrar of the university; and

(g) The Finance Officer shall be the Member Secretary.

(2) The Finance Committee shall meet at least four times during an academic year, and the period between two consecutive meetings shall not exceed four months.

(3) The quorum for the meetings of the Finance Committee shall be five.

(4) The Finance Committee shall have the following powers, functions and duties, namely: -

(a) to scrutinize the annual budget estimates and the annual accounts of the University, review the yearly audit reports and make recommendations thereon;

(b) to scrutinize all proposals of the University involving expenditure in excess of budgetary provision, for which no provision is made in the budget, including creation, upgradation and abolition of posts in the University and make recommendations thereon;

(c) to plan practical and implementable strategies for mobilizing funds for the University and also make proper plans for investment of excess funds at the disposal of the University and make recommendations thereon;

(d) such other functions as may be prescribed by the Statutes:

Provided that the above recommendations are placed at the meetings of the Board of Governors and for its consideration;

(5) Notwithstanding anything contained in sub-section (4), the Vice-Chancellor may in case of urgency and for reasons to be recorded in writing, incur without the approval of the Finance Committee, any expenditure up to a limit as specified in the Statutes in any one case for which no provision is made in the budget or which is in excess of the provisions made in the budget:

Provided that, such expenditure shall be placed before the Finance Committee for ratification at its immediate next quarterly meeting;

Provided further that, if the incurring of expenditure by the Vice-Chancellor is not satisfactory, the Finance Committee may refer it to the Board of Governors, whose decision in the matter shall be final.

41. The Schools of Studies:- (1) The Universities may have Schools to match their objects. Each School of Studies shall consist of such number of Departments / Programmes of Studies as may be assigned to it by the Statutes or Regulations.

(2) Each School of Studies shall consist of the Dean of the School as Chairperson, Professors, Associate Professors, Assistant Professors and others.

(i) the Dean of the School of Studies shall be the Chairperson;

(ii) the Chairpersons of the Departments / Programmes of Studies in the School;

(iii) all the Professors and in the absence of Professors, Associate Professors in the School from each Department / Programme in the School;

(iv) one Associate Professor and one Assistant Professor in each Department of Studies nominated by the Vice Chancellor by rotation in the order of seniority for a term of two years;

(v) two experts from other universities in the State nominated by the Vice Chancellor for a term of two years; and

(vi) In addition to members as specified above, each School shall have three experts in the subjects and or allied subjects or industries nominated by the Vice Chancellor from the panel of at least five names suggested by the Dean of the School concerned. The tenure of their office shall be two years.

(3) The Schools shall meet ordinarily once in a year or at such times as are fixed by the Vice Chancellor or on the requisition of the Dean with the prior permission of the Vice Chancellor or on the written requisition of five members entitled to be present at the meetings of the School. The Dean shall preside over the meeting of the School. In the absence of the Dean, the senior-most Professor present in the meeting shall preside over the meeting.

(4) The Vice Chancellor may convene joint meetings of two or more Schools for the purpose of considering any matter common to them and shall preside over such meeting and in his absence, the senior most Dean shall preside over the meeting.

(5) The quorum for a meeting of a School shall be one-third of the number of members entitled to be present at the meeting.

(6) Notwithstanding anything stated above, the Schools of Studies may have their own internal structure and administrative process.

(7) The Schools shall have the following powers, namely:

(i) to consider and report on any matter referred to it by any authorities of the University;

(ii) to refer any matter to a Board of Studies comprised within the School for consideration and report;

(iii) to consider and report on any recommendation referred to it by a Board of Studies before it is referred to the Academic Senate; and

(iv) to make suggestions or recommendations to the Academic Senate regarding

the organization of teaching, training, research and Assessment and Evaluations in the subjects comprised it.

(8) Each School may have one or more Board(s) of Studies.

42. The Boards of Studies:-

(1) There shall be a Board of Studies for every subject or a group of subjects, as may be prescribed by the Statutes or Regulations:

Provided that, the Board of Governors may constitute separate Boards of Studies for Undergraduate and Postgraduate Studies.

(2) Without prejudice to the provisions of sub-section (1), the constitution, powers, functions and duties of the Boards of Studies shall be as prescribed by the Statutes.

43. The College Development Council:- There shall be a College Development Council in the affiliating Universities for the proper planning and integrated development of Colleges and to provide the Colleges necessary help and guidance, and it shall serve as a vital link between the University Grants Commission/ Higher Education Council of India / NHERC, University, Colleges and State Higher Education Department. The College Development Council shall prepare the Colleges to attain the status of Degree Granting Autonomous Colleges. The Constitution, powers and functions of the College Development Council shall be as provided by the Statutes.

44. The Planning, Monitoring and Evaluation Board:-

(1) There shall be a Planning, Monitoring and Evaluation Board at each University, to plan the Academic programmes, Research programmes, inter-disciplinary activities, interaction with outside agencies for training, extension and research and to monitor from time to time the implementation of programmes and activities formulated by it.

(2)The constitution, powers and functions of the Planning, Monitoring and Evaluation Board shall be as provided by the Statutes.

45. The Research, Innovation and Consultancy Board:-The constitution, powers and functions of the Research, Innovation and Consultancy Board shall be as provided by the Statutes.

46. The Infrastructure Development and Purchase Committee:-

(1) In every HEI/ University, there shall be constituted a Infrastructure Development and Purchase Committee to carry out minor and major infrastructure development and to approve purchases and maintenance activities (Purchase of vehicles, gadgets, articles, furniture or any other maintenance items) of the University efficiently subject to such rules made by the State Government in a time bound manner.

(2) The Infrastructure Development and Purchase Committee shall consist of the

following members, namely -

(a) The Vice Chancellor - Chairperson

(b) Chief Engineer of the Public Works Department in charge of the region in which the University is situated, or his nominee not below the rank of Superintending Engineer from that region - Member

(c) One eminent Architect nominated by the Board of Governors - Member

(d) One member of the Board of Governors nominated by it

(e) The Registrar - Member

(f) The Finance Officer - Member

(g) The University Engineer - Secretary

(3) All the Members of the Committee, other than ex-officio Members shall hold Office for a term of three years and shall not be eligible for renomination for a second term.

(4) The quorum for the meetings shall be four, including the PWD representative.

(5) The Rules and Procedure for the functioning of the Infrastructure Development and Purchase Committee shall be as prescribed by rules by the State Government (buildings, roads or any other infrastructure undertaken in the University, the estimate shall be prepared as per State Government PWD SR prevailing rates).

(6) The Committee shall be governed by the Karnataka Transparency in Public Procurement Act, 1999 and Rules made in this behalf by the State Government from time to time.

47. The Board of Appointment of Examiners:-

(1) There shall be a Board of Appointment of Examiners constituted for each School of Studies of a University for the purpose of preparing a list of Examiners each year.

(2) Each such Board of Appointment of Examiners shall consist of the following members, namely -

(i) the Vice-Chancellor or the respective Dean shall be the Chairperson;

(ii) the Registrar (Assessment & Evaluation);

(iii) the Dean of the School concerned;

(iv) the Chairman of the Board of Studies in the particular subject;

(v) one teacher each teaching undergraduate and Postgraduate subjects within the concerned Department/Programme of Studies in the School nominated by the Vice-Chancellor.

(3) The Board of Appointment of Examiners shall prepare the list of examiners from amongst the persons included in the panels to be prepared by the Board of Studies and submit it for approval by the Board of Governors.

(4) The Board of Governors shall not make any change in the list except after passing a resolution specifically indicating the grounds on which such a change is suggested or made.

(5) If for any reason any examiner appointed by the Board of Governors is unable to accept the examinership and a fresh appointment cannot be made in time by the Board of Governors, the Vice-Chancellor shall appoint another examiner and report such appointment to the Board of Governors. .

48. Other Boards, Committees and Councils:-

(1) The University may establish such other Boards, Committees and Councils as may be provided by the Statutes from time to time.

(2) The constitution, functions, powers and duties of the Boards, Committees and Councils established under sub-section (1), shall be as prescribed by the Statutes

CHAPTER – V

STATUTES, REGULATIONS AND RULES

49. Statutes:-

(1) Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters relating to a university, namely:

(a) the constitution, powers, functions and duties, procedure for conduct of business of the Authorities of the University and such other Bodies as may be declared to be Authorities of the University from time to time.

(b) the appointment, continuance in office or withdrawal or removal of members of the said Authorities or Bodies, including the continuance in Office of the first members and the filling of vacancies of members and all other matters relating to those Authorities or Bodies of which it may be necessary or desirable to provide.

(c) delegation of powers, functions and duties to the Vice Chancellor and other officers of the University;

(d) the conferment of honorary degrees;

(e) holding of convocations for conferring degrees and diplomas; and issue of degree certificates in case of urgency before convocation;

(f) the withdrawal of degree, diploma, certificate and other academic distinctions;

(g) the establishment, maintenance and abolition of Schools, departments, boards, councils, hostels, colleges and institutions, etc;

(h) the conditions under which Colleges may be affiliated as affiliated Colleges, conferment of autonomous status on Colleges either individually or in clusters and recognized as research centres and such affiliation may be withdrawn;

(i) the conditions under which institutions may be conferred the status as recognized institutions for research purposes;

(j) the institution of fellowships, scholarships, studentships, exhibitions, medals and prizes;

(k) the institution/ creation, suspension or abolition of posts of Professors including Honorary or Emeritus or Adjunct Professors, Associate Professors or Readers, Assistant Professors or Lecturers, ministerial and non-teaching posts of University departments/programmes and constituent colleges.

(l) the method of recruitment of teachers and academic staff and other employees in the Universities and affiliated Colleges:

Provided that, the scales of pay of the employees excluding those who are drawing University Grants Commission scales of pay shall be commensurate with the scales of pay applicable to State Government employees;

(m) the acceptance and management of bequests, donations and endowments;

(n) the regulation of admissions, fee structure in the University and in the

affiliated Colleges and for admissions to the Assessment, degrees and diplomas of the University;

(o) fees to be charged for the services rendered by the University;

(p) the methodology of administering sponsored research, consultancy, patents and intellectual property rights, continuing education and other extension services in the University departments/ programmes, constituent and affiliated Colleges;

(q) the terms and conditions of service including determination of seniority of the officers and employees of University departments/programmes or constituent and affiliated Colleges, including the provisions for pension, insurance, provident fund etc.;

(r) The delegation of powers vested in the authorities or officers of the university;

(s) The maintenance of discipline among the employees and students; and

(t) all other matters which by this Act are to be or may be provided for by the Statutes.

(2) The Statutes shall come into force only from the date of approval by the Board of Governors or on such other date as the Board of Governors may direct.

(3) The Statutes governing the conditions of service of employees including the emoluments shall be in conformity with the policy of the State Government.

(4) The State Government shall circulate first model Statutes to all the Universities. The model Statutes framed and circulated by the State Government be adopted with suitable modifications and enforced by the respective Universities. For framing such Statutes, a Committee of Experts may be constituted by the Karnataka State Higher Education Council which shall submit the draft Model Statutes to the State Government.

50. Enactment of Statutes and their making:-

(1) The Board of Governors of each University may, from time to time, make new or additional Statutes or may amend or repeal the Statutes referred to above:

Provided that, the Board of Governors shall not make, amend or repeal any Statutes affecting the status, powers or constitution of any Authority of the University until such Authority has been given an opportunity of expressing an opinion in writing on the proposed changes, and any opinion so expressed shall be considered by the Board of Governors.

(2) The Board of Governors may take up for consideration the draft of a Statute either on its own motion or on a proposal made by the Academic Senate. When the draft is not proposed by the Academic Senate, the Board of Governors shall obtain the opinion of the Academic Senate thereon before considering the same.

(3) The Board of Governors shall obtain the opinion of the Finance Committee in

respect of such of the Statutes involving financial implications.

(4) The Board of Governors, if it thinks necessary, may also obtain the opinion of any Officer, Authority or Body of the University in regard to the draft of the Statute before taking it up for consideration.

51. Regulations:-

(1) Subject to the provisions of this Act and the Statutes, the Regulations may provide for all or any of the following matters, namely -

(a) admission of students in the University Departments, constituent and affiliated Colleges and their enrolment as such;

(b) programmes or courses of study for all degrees, diplomas and certificates of the University;

(c) recognition of Examinations/Assessments and degrees of other Universities as equivalent to the Examinations/Assessments and degrees of the University;

(d) introduction of semester scheme, choice-based-credit-system, modern grading practices and other innovations in evaluating students' performance;

(e) degrees, diplomas and certificates and other requirements for the same and the measures to be taken relating to the granting and obtaining the same;

(f) conditions relating to the award of fellowships, scholarships, studentships, exhibitions, medals and prizes;

(g) Assessment and Evaluation of students, including the terms of office and the duties of examining bodies, examiners and moderators;

(h) University programmes or courses, Assessment and Evaluations and conditions on which students of the University or the affiliated colleges or other university institutions shall be admitted to Assessment or degrees, diplomas and other certificates of the University;

(i) grant of exemptions;

(j) the conditions of residence of the students of the University;

(k) special arrangements, if any which may be made for the residence, discipline and teaching of women and persons with disability students and prescribing for them special course of study where necessary;

(l) regulating of giving religious instruction;

(m) management of Colleges and other institutions founded or maintained by the University;

(n) conditions for recognition of hostels not maintained by the University;

(o) health and discipline of, and disciplinary proceedings against students in the University and in the affiliated colleges and other institutions;

(p) regulations to be observed and enforced by the Colleges and recognized

institutions in respect of transfer of students; and

(q) all other matters which by this Act or by the Statutes are to be or may be provided for by the Regulations:

Provided that, nothing pertaining to affiliated colleges shall apply to non-affiliating unitary university.

52. Procedure for making of Regulations:-

(1) The Academic Senate may make the Regulations consistent with this Act, the Statutes providing for exercising all or any of the powers enumerated in this Act and submit them to the Board of Governors for approval;

(2) In making the Regulations, the Academic Senate shall consult the Board(s) of Studies concerned when such Regulations affect the duties of examiners;

(3) The Board of Governors shall not have power to amend the draft of any Regulation proposed by the Academic Senate, but it may reject the proposal or return the draft to the Academic Senate for reconsideration, either in whole or in part together with such amendments as the Board of Governors may suggest;

(4) The first Regulations shall be made by the Vice Chancellor with the previous approval of the Board of Governors and the Regulations so made may also be amended, repealed or added at any time by the Board of Governors;

(5) All Regulations made by the University shall be in conformity with the directions issued by the National Regulatory Bodies as the case may be. Further they shall not be contrary to the orders issued by the State Government and the Statutes approved by the Board of Governors;

(6) All Regulations approved by the Board of Governors shall have effect from such date as it may direct.

53. Power to make Rules:-

(1) The Government may, by notification and after previous publication, make rules for carrying out all or any of the purposes of this Act.

(2) Every rule made under this Act shall be laid as soon as it is made, before each House of the State Legislature while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

CHAPTER - VI
FINANCE AND ACCOUNTS

54. University Funds:-

(1) The amounts received from any of the following sources shall form part of the University Fund at each University, -

(a) any contribution or grant made by the University Grants Commission or the Central Government;

(b) any contribution or grant made by the State Government;

(c) any bequests, donations, endowments or other grants made by private individuals or institutions;

(d) the income received by the University from fees and charges;

(e) any contribution or bequests from the industries, traders or entrepreneurs;

(f) any contribution or endowments from foreign Governments or any foreign Institutions or companies subject to any law for the time being in force; and

(g) the amounts received from any other source.

(2) The said fund shall be kept in a Scheduled Bank as defined in the Reserve Bank of India Act, 1934, or in a corresponding new bank constituted under the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 or may be invested in securities authorized by the Indian Trusts Act, 1882, as may be decided by the Board of Governors.

(3) The funds and income of the University shall be solely utilized for achievement of the objects of the University and no payment shall be made to the trustee or members by way of profit, interest or dividends etc.

(4) The said Fund may be employed for any of the purposes of the University in the manner provided by the Statutes.

(5) No part of the income of the University shall be utilized directly or in directly for the benefit of any Officer or Authority of the University or any other person who has made substantial contribution to it or of any relative of such Officer or Authority or person.

55. Annual Accounts and Audit:-

(1) The Annual Accounts of the University shall be prepared under the directions of the Board of Governors.

(2) The Annual Accounts so prepared shall be considered by the Finance Committee at its next earliest meeting. The Finance Committee may pass a resolution with reference thereto and communicate the same to the Board of Governors. The Board of Governors shall consider the suggestions made by the Finance Committee and take such action thereon as it thinks fit and shall inform the Finance Committee at its next meeting the action taken by it or the reasons for not taking action.

(3) The Annual Accounts of the University shall be audited by the Principal Director, Karnataka State Audit and Accounts Department once in a year, preferably in the month of April.

(4) The Annual Accounts so audited shall be placed before the Finance Committee and the Board of Governors along with audit report and thereafter transmitted to the State Government with comments before the end of September in each year. The State Government shall lay the same before both Houses of the State Legislature at their next earliest session.

(5) The University shall, where its total income as computed under the Income Tax Act, 1961(Central Act 43 of 1961) without giving effect to the provisions of sections 11 and 12 of that Act exceeds the maximum amount which is not chargeable to income tax in any previous year, get its accounts for that year audited by an accountant as defined in the Explanation to sub-section (2) of section 288 of the Income Tax Act, 1961 and furnish along with its return of income for the relevant assessment year the report of such audit in the prescribed form duly signed and verified by such accountant and setting forth such particulars as may be prescribed, in accordance with clauses (b) and (ba) of sub-section (1) of section 12A of the Income Tax Act, 1961.

(6) The University shall utilize its income and movable and immovable property only for the furtherance of its objects, shall not invest or deposit any income accumulated or set apart for application to charitable purpose in India in any form or mode other than those specified in sub-section (3) of section 11 of the Income Tax Act, 1961 and shall not distribute its income or property to any person by way of profit, dividend and interest or in any other manner.

56. Financial Estimates:-

(1) The Board of Management shall prepare with the assistance of the Finance Officer before such date as may be prescribed by the Statutes, the financial estimates for the ensuing year and get them scrutinized by the Finance Committee and place the same before the Board of Governors.

(2) The Board of Governors may, in cases where expenditure in excess of the amount provided in the budget is to be incurred or in cases of urgency, for reasons to be recorded in writing, incur the expenditure subject to such restrictions and conditions as may be specified in the Statutes. Where no provision has been made in the Budget in respect of such excess expenditure, a report shall be made to the Finance Committee for its consideration and advice at its next meeting.

(3) The Budget Estimates of the University shall be prepared keeping in view the anticipated grants from the State Government and all other sources including the mobilization of its resources. However, supplementary Budget Estimates may be placed before the Board of Governors in October every year in anticipation of any additional grants; but, no expenditure on this part shall be incurred unless such additional grants are received.

(4) The University shall, without the prior approval of the State Government, not divert for other purposes earmarked funds or revise the scales of pay of its staff or implement any scheme which involves any matching contribution from the State Government or a scheme which imposes a recurring liability on the State Government after the assistance from the sponsoring Authorities ceases:

Provided that, no prior approval is necessary where a scheme or a programme which imposes a recurring liability on the University, but funded by the University Grants Commission, or the Central Government is met out of the interest derivable from a corpus or contribution or donation or endowment instituted by private sector or industry or individual or institutions and such a recurring liability does not cast any burden on the State Government and the entire expenditure in that respect is met out of the University funds.

57. Powers of Government to direct Audit:-

(1) The State Government shall have the power to direct, whenever deemed necessary, an Audit of the Accounts of the University, including those of the institutions managed by it, by such auditors as it may specify.

(2) Whenever the Accounts of the University are audited by the Accountant General and the report thereof with observations or in respect of the items held for want of clarifications are made available to the University for further comments or remarks, the University shall within thirty days from the date of receipt of such report, furnish its comments or remarks to the Accountant General through the State Government.

58. Annual Report:-

(1) The Vice Chancellor shall prepare the Annual Report containing all the particulars highlighting the activities of the University, its targets and achievements concerning each financial year and submit the same to the Board of Management and the Academic Senate before 30th of June of every year. The Board of Management and the Academic Senate may pass resolutions thereon and forward the same to the Board of Governors. The Board of Governors shall then consider and approve the report with or without modifications.

(2) Copies of the Annual Report incorporating the resolutions of the Board of Management and the Academic Senate, and a report of the actions taken by the Board of Governors of the University shall be forwarded to the State Government before 30th of September every year. The State Government shall lay the same before both the Houses of the State legislature at their next sessions. The Annual Report shall also be uploaded on the University Website regularly.

CHAPTER - VII
VACANCIES IN THE AUTHORITIES

59. Vacating of Office:- The Term of Office and vacancies of the members and restriction on holding the membership of the Authorities of the Board of Governors, the Academic Senate etc.

(1) Notwithstanding anything contained in this Act, the Board of Governors, the Board of Management and the Academic Senate and other bodies shall be continuous. Only the terms of Chairpersons and nominated Members expire.

(2) Any member other than the ex-officio member of any Authority or Body of the University may resign his Office. The letter of resignation written in hand by the member shall be sent to the Vice-Chancellor. Such resignation shall take effect immediately on its acceptance and communication to the member concerned.

(3) No member of the Authority or Body of the University who is, appointed, nominated or elected in his capacity as member of a particular electorate or Body or as teacher or where expressly stated so, as the holder of a particular appointment shall continue to be a member of such Authority or Body on his ceasing to be member of the particular electorate or Body or teacher or the holder of that particular appointment:

Provided that, a teacher who is continued on attaining superannuation till the end of the academic year or semester on re-employment basis, shall also cease to be a member of such Authority or Body on attainment of superannuation.

(4) A Member of any Authority or Body of the University shall cease to be a Member on his being convicted by a Court of law for any offence involving moral turpitude.

(5) A member of any Authority or Body of the University shall also cease to be a Member on his being found guilty of any misconduct by an Inquiry Committee constituted by the Chairperson of Board of Governors. However, the aggrieved Member shall be free to appeal to the Chancellor whose decision on this matter shall be final:

Provided that, during the pendency of the appeal, the membership of such Member shall be held in abeyance;

Provided further that, any Member removed under sub-sections (4) and (5) shall not be appointed to any Authority or Body of any University established and incorporated under this Act.

(6) Save as otherwise provided in this Section, the term of office of the non-official members of the Board of Governors shall be three years from the date of their nomination or election and those of official members shall be two years, whereas the membership of the Academic Senate shall be two years in both the categories. The membership of other bodies shall be as prescribed.

Provided further that the Chairperson, or any other non-official member of the Board of Governors, Academic Senate and other bodies may be appointed or nominated for a second term.

Provided also that the Chairperson, or any other non-official member of the

Board of Governors, Academic Senate and other bodies shall not be appointed or nominated for more than two consecutive terms.

(7) The term of office of an ex officio member shall continue so long as he holds the office by virtue of which he is a member. He shall cease to hold the membership on the attainment of superannuation.

(8) The term of office of a member nominated or elected to fill a casual vacancy shall continue for the remainder of the term of the member in whose place he has been nominated or elected.

(9) Notwithstanding anything contained in this Section, an outgoing member shall continue in office until another person is nominated as a member in his place.

(10) The non-official members of the Board of Governors, Academic Senate and other bodies shall be entitled to such allowances, if any, from the University as may be provided for in the Regulations but no ex-officio member shall be entitled to any allowance by reason of this sub-section.

(11) A member of the Board of Governors shall cease to be a member if he:

(i) Tenders resignation and such resignation is accepted; or

(ii) Become of unsound mind and stand so declared by a competent court; or

(iii) Become undischarged insolvent; or

(iv) Have been convicted of an offence involving moral turpitude.

(v) Any such cessation shall constitute a casual vacancy.

(12) Any member of the Board of Governors may, by writing addressed to the Chairperson, resign his office and such resignation shall take effect on the date it is accepted by the Chairperson, which shall be not later than two (2) weeks from the date of the intimation of resignation written by such member to the Chairperson.

(13) Any member nominated to any of the Authorities under this Act shall hold office during the pleasure of the nominating Authority concerned.

(14) Every member nominated to any of the Authorities of the University shall have the duty to report to the nominating Authority, the irregularities if any, that may come to his notice.

(15) Save as otherwise provided in this Act, no person who is not a post-graduate of any University established by law shall be eligible for nomination as a member of any of the Authorities under this Act.

(16) Notwithstanding anything contained in this Act but save as otherwise provided, any employee of the University, both teaching and non-teaching or ministerial or any person in the management of an affiliated College in whatever capacity, shall not be eligible for nomination as a member of any of the Authorities under this Act.

60. Filling of Vacancies:- All vacancies among the Members, other than the ex-officio Members of any Authority or Body of the University arising by reasons of death, resignation, removal or otherwise shall be filled as soon as conveniently may be, by the

person or Body that nominated, the Member whose place has become vacant and the person so appointed, nominated or elected or co-opted shall be a member of such Authority or Body for the residual period for which the Member in whose place the person is appointed, nominated elected or co-opted would otherwise have continued in office.

CHAPTER-VIII
APPOINTMENT OF TEACHERS AND OTHER EMPLOYEES OF THE UNIVERSITIES

61. Appointment of Teachers, University Librarians, and Directors of Physical Education and Sports:-

(1) The qualifications, method of recruitment, selection procedure etc., of Teachers, University Librarians, and Directors of Physical Education and Sports etc., shall be in accordance with the Statutes framed based on the University Grant Commission Regulations or such other related national statutory or regulatory bodies and the orders of the State Government thereon issued from time to time.

(2) Every post of Professor, University Librarian, Associate Professor, Assistant Professor, or any equivalent positions to be filled by selection shall be widely publicized together with the minimum qualifications and experience requirements, the scale of pay, the number of posts to be filled, the last date for receipt of applications and classification of vacancies among the Scheduled Castes, the Scheduled Tribes and Other Backward Classes, and other reservations as per the State Government Orders issued from time to time.

(3) Whenever any new subject is introduced in the University or any new Department is established, the appointment of Professors, Associate Professors, Assistant Professors in such a subject or Department, as the case may be, shall be made under the provisions of this section.

(4) Notwithstanding anything contained in the preceding sub-sections, the Board of Governors shall be competent to invite on the recommendation of the Vice-Chancellor a person of high academic distinction and professional attainments to accept the post of visiting Professor in the University on such terms and conditions as may be mutually agreed upon, which shall not be more than ten such visiting Professors at any given time.

62. Appointment in Accordance with the Promotion Schemes:-

(1) The Schemes governing promotions as prescribed by the Statutes adopting the Schemes evolved by the University Grants Commission, All India Council for Technical Education and other Statutory Regulatory Bodies shall be followed.

(2) The selection procedure shall be as provided by the Statutes and supplemented by the norms and guidelines of the Statutory Regulatory Authorities, like the University Grants Commission.

63. Appointments to Part-Time Posts:-

(1) There shall be a Selection Committee for selecting persons for appointment as part-time Professors including Honorary or Adjunct Professors, Associate Professors or Readers, Assistant Professors or Lecturers, in the University.

(2) The composition of such a Selection Committee and the procedure of making such appointment to a University shall be as provided by the Statutes.

64. Temporary Appointments:-

(1) Notwithstanding anything in sections 61, 62, 63 and 65, the Vice-Chancellor may make temporary appointments of not more than one year duration to posts of Assistant Professor and such non-teaching staff as may be specified in the Statutes where such posts are either temporary or appointments to such posts cannot be made in accordance with sections 61, 63 and 65 without delay.

(2) The appointments under sub-section (1), shall be made only against sanctioned posts, and in the manner provided for by the Statutes.

65. Appointment of Non-teaching, Ministerial and other Staff:-

(1) There shall be constituted a Board of Appointment to select the candidates for appointment to non-teaching, ministerial and other posts in the University.

(2) The Board shall consist of,-

(i) the Vice-Chancellor-ex-officio Chairman;

(ii) the Additional Chief Secretary or Principal Secretary or Secretary to Government in-charge of Higher Education or his nominee not below the rank of a Deputy Secretary to Government;

(iii) the Chairman of the Departmental Council, wherever required;

(iv) one expert nominated by the Vice-Chancellor;

(v) the Registrar;

(vi) the Commissioner, Social Welfare Department or his nominee not below the rank of a Deputy Director;

(vii) the Commissioner, Backward Classes Welfare Department or his nominee not below the rank of a Deputy Director;

(viii) the Director, Minority Welfare Department or his nominee not below the rank of a Deputy Director;

(ix) the Director of Women and Child Development or his nominee not below the rank of a Deputy Director.

(3) The method of interview and selection procedure shall be as prescribed by the Statutes.

(4) While preparing the select list under sub-section (3), the Board shall follow the rules or orders issued by the State Government from time to time in the matter of reservation of appointments or posts for persons belonging to Scheduled Castes and Scheduled Tribes and Other Backward Classes, under Article 16(4) of the Constitution, and other reservations as per the Orders of the State Government.

(5) All appointments shall be made by the Board of Governors by operating the select list prepared by the Board of Appointment in the order of merit in which the names have been arranged. If any difference arises between the Board of Appointment and the Board of Governors, the matter shall be referred to the Chancellor, through the State Government in the Department of Higher Education. The decision of the Chancellor upon such reference shall be final.

(6) The quorum for the meeting shall be four including two Government Officers.

CHAPTER - IX

INTER-UNIVERSITY TRANSFER OF EMPLOYEES

66. Transfer of Employees:-

(1) Notwithstanding anything contained in any contract, agreement or in any other law for the time being in force and the conditions of service applicable to the employees of the University, the Chancellor in consultation with the BoG/Vice-Chancellor may for administrative reasons or on the request of the employee, transfer any employee holding any post in a University to any other University established under this Act and the employee so transferred shall carry with him such conditions of service as may be specified in the order of transfer. Such employee shall on transfer be deemed to have been appointed by the Competent Authority of the University to which he is transferred. However, where a person is transferred on the request of the employee he shall forgo the seniority the person enjoyed before the transfer:

Provided that an employee so transferred shall have an option to retain his lien in the University in which he was initially appointed or for absorption in the University to which he is transferred.

(2) For the purpose of ordering such a transfer of employees under sub-section (1), the Chancellor shall be deemed to be the Appointing Authority in respect of posts held by the employees so transferred.

(3) The employee so transferred for administrative reasons in public interest shall be eligible for counting of his previous service for purpose of seniority, travelling allowance, transfer grants and cost of transportation of personal effects as admissible to the employees of the State Civil Services, at the scales applicable to the corresponding posts.

(4) The seniority of an employee so transferred in public interest and for administrative reasons who has not opted to retain his lien in the University in which he was appointed shall be determined with reference to the date of his initial appointment in the respective cadre or post. Provided that the transferee has not carried the post with him to the University where he stands transferred.

CHAPTER-X

AFFILIATION OF COLLEGES AND RECOGNITION OF INSTITUTIONS

67. Application of provisions of this Chapter. - Nothing contained in this chapter shall apply to the Special Purpose non-affiliating Unitary Universities.

68. Affiliation of Colleges:-

(1) Colleges within the University jurisdictional area shall on satisfying the conditions specified by it be affiliated to the University as Affiliated Colleges of the University.

(2) The conditions for affiliation and the procedure of affiliating such colleges to a University other than unitary University shall be as provided by the Statutes.

69. Restriction on Admission of Students in a New College.-

(1) The admission of students shall not be made by a new College seeking affiliation to the University or by an existing College seeking affiliation to a new course of study or in excess of the stipulated intake capacity, unless, as the case may be, affiliation has been granted by the University to a new College or to a new course in the existing Affiliated College in respect of such a course of study or for variation of the stipulated intake.

(2) Action shall be taken against any College contravening the provisions of sub-section (1), in accordance with the provisions of the Karnataka Prohibition of Admissions of Students to Un-recognized and Un-Affiliated Educational Institutions Act, 1992 (Karnataka Act 7 of 1993).

70. Restriction for Appearing in the Assessment and Evaluations:-

(1) A student whose admission has become invalid or whose admission has not been approved by the University shall not be eligible to appear for the Assessment/ Examination conducted by either the College or the University.

(2) A student who has been admitted to a College or a programme or course of study in excess of the prescribed intake capacity shall not be allowed to continue his studies or take his Assessment in another college approved by the University.

(3) Any dispute in this regard shall be referred to the Board of Governors whose decision on this matter shall be final and binding.

(4) The College or Institution which has admitted such ineligible students shall be liable for punishment as per the Statutes.

71. Permanent Affiliation:- A College which has been affiliated continuously for a period of not less than five years and has fulfilled all the conditions of affiliation and attained the academic standards and excellence and also the administrative standards as stipulated by the University from time to time, shall be eligible for the grant of permanent affiliation. The procedure to be followed in this behalf shall be as prescribed in the Statutes.

72. Withdrawal of Affiliation:-

(1) The rights conferred on a college by affiliation, either temporary or permanent, may be withdrawn in whole or in part or modified, if the college has failed to comply with any of the provisions of this Act or the college has failed to comply with any of the conditions of the affiliation or the college is conducted in a manner prejudicial to the interest of the education.

(2) A motion for the withdrawal or the modification of such rights shall be initiated only in the Board of Governors. Any member of the Board of Governors, including ex-officio member who intends to move such a motion shall give a notice of it in writing setting out the grounds on which such a motion is made.

(3) Before taking the said motion into consideration, the Board of Governors shall send a copy of the said notice to the Principal of the college concerned specifically intimating that any representation in writing on the motion shall be submitted by the college within a period to be specified in such intimation and the same will be considered by the Board of Governors.

(4) The period so specified in sub-section (3) may, if so expedient be extended by the Board of Governors up to a reasonable time.

(5) On receipt of the representation or on the expiry of the period referred to in the preceding sub-sections, the Board of Governors after considering the notice of motion, the grounds set out therein and the representation received thereon and after such inspection by a Committee constituted and authorized by it in this behalf and after such further enquiry as may appear to it to be necessary pass a resolution regarding the reasons therefor and shall transmit it to the Academic Senate.

(6) On receipt of the report under sub-section (5), the Academic Senate shall, after such further enquiry, if any, as may appear to it to be necessary, record its opinion and refer back to the Board of Governors.

(7) The Board of Governors after considering the resolution of the Academic Senate, shall pass a final resolution recommending the withdrawal of affiliation. Such a resolution shall not be deemed to have been passed by the Board of Governors unless it has obtained the support of two thirds of the members present at a meeting.

(8) The Registrar shall submit the proposal with all the documents including the notice of motion, the reply of the college, resolutions of the Board of Governors and the Academic Senate to the State Government for taking decision.

(9) The State Government after such further enquiry, as may appear to it to be necessary may direct the University to withdraw the affiliation in whole or in part or as modified and as applicable from a particular academic year or to reject the proposal.

(10) The University shall on receipt of such direction pass formal order in accordance with such direction.

(11) The students of a college, the affiliation of which has been withdrawn in whole or

in part shall be accommodated in the nearby colleges by the University by increasing the intake in respect of particular course of study to the extent of such students to be accommodated. All the documents in respect of such students shall be transferred from the college in respect of which the affiliation has been withdrawn to the college to which they are transferred by the University.

73. Autonomous Colleges:-

(1) Notwithstanding anything contained in this Act or the Statutes and Regulations made thereunder, the University may, with the prior concurrence of the State Government designate for such period as may be specified, an affiliated college, department or units as an Autonomous College for any course of study, after following the procedure and subject to such conditions as may be specified in the Statutes made in this behalf and with a view to improve the quality of education and to introduce new and relevant courses of study.

(2) Subject to Statutes made in this behalf an Autonomous College so designated shall be entitled to design the courses of studies, devise appropriate teaching methods, devise methods of Assessment and Evaluation and tests pertaining to the award of the degree or diploma by the University and frame rules of admission of students.

(3) Subject to such periodic review as may be prescribed in the Statutes, the University may, with the prior concurrence of the State Government, continue the designation of the Autonomous College for such further period as may be specified or cancel such designation.

(4) The Statutes for this purpose shall be made in consultation with the Academic Senate of the University and shall provide for,-

(a) the manner in which and the conditions subject to which an affiliated college, department or unit may be designated as Autonomous College or the designation of such college may be cancelled;

(b) matters incidental to the administration of an Autonomous College including the constitution or reconstitution, functions, powers and duties of the Governing Body, Academic Council/ Senate, Board of Studies and Board of Examiners of the Autonomous College;

(c) matters relating to admission of students;

(d) periodic review for continuance or cancellation of designation of Autonomous College;

(e) such other matters as may be relevant to the working of an Autonomous College including the matters mentioned in sub-section (2).

74. Autonomous Degree Granting Colleges:-

(1) Autonomous Colleges or Colleges which fulfil the minimum benchmarks in academic and curricular matters; teaching and assessment; governance reforms; financial robustness; and administrative efficiency may be upgraded to the

degree granting Autonomous College as per UGC/NHERC regulations which can eventually become full pledged universities on fulfilling the required benchmarks in terms of accreditation.

(2) All colleges currently affiliated to a university shall attain the required benchmarks over time to secure the prescribed accreditation benchmarks to become eventually degree-granting autonomous colleges.

75. Voluntary Closure of Affiliated College or Course:-

(1) The management of an affiliated college which intends to close down the college or a course in view of its incapacity or financial viability or breakdown of the management, shall give a notice in writing of not less than three months prior to the intended closure of the college to the University and to the State Government, stating the reasons therefor.

(2) The application for closure of the college or a course shall be considered by the Academic Senate and the Board of Governors and pass appropriate resolutions thereon.

(3) The Registrar shall transmit the application and the resolutions of the Academic Senate and the Board of Governors to the Government which shall on consideration of the same issue directions either to permit the closure or to reject the closure to the University and the University shall on receipt of such directions pass orders accordingly.

(4) The management shall not close down the college or a course during the currency of the academic year, and until the annual Assessment and Evaluations conducted by the University in respect of the course of study are over and a formal order has been issued by the University to do so.

(5) The students of such closed colleges shall on transfer be accommodated in the nearby colleges by the University by increasing the intake in respect of particular course of study to the extent of such students to be accommodated from such closed college and all documents in respect of each student shall be transmitted to the college in which such students are admitted.

(6) If within ninety days after the expiry of the term of notice under sub-section (1), the State Government does not issue any direction either permitting or rejecting the closure it shall be deemed subject to the provisions of sub-section (4), that the management is permitted to close down the college or the course as the case may be.

76. Recognition of Certain Institutions:-

(1) Any institution situated within or outside the University area other than a College which conducts research or specified studies or specialized studies may be recognized by the Board of Governors as a recognized institution for such purpose and for such time period, in such manner and subject to such conditions as may be

prescribed by the Statutes.

(2) Such recognition may be withdrawn either in whole or in part or modified in such manner and for such reasons as may be prescribed by the Statutes.

77. Inspection of Affiliated Colleges and Recognized Institutions:-

(1) Every affiliated college including permanently affiliated college and recognized institution shall furnish to the Registrar such reports, returns and other information as the Board of Governors in consultation with the Academic Senate may require to judge the performance of the College or Institution and the academic or research quality and standard achieved.

(2) The Board of Governors shall cause every such college or institution to be inspected from time to time by a Committee constituted for the purpose.

(3) The Board of Governors may call upon any affiliated college or recognized institution so inspected, to take within a specified period, such action as may appear to it, to be necessary in respect of any matters.

(4) Every affiliated college or recognized institution shall comply with the directions of the University issued from time to time in respect of its academic or research and administrative matters and matters ancillary thereto.

CHAPTER - XI

ENROLMENT AND DEGREES

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78. Eligibility for Admission of Students:- No student shall be eligible for admission to a course of study, a degree or a diploma at the University, unless he possesses such qualifications as may be prescribed by its Regulations from time to time.

79. Honorary Degrees:-

(1) If the Academic Senate so recommends by a two thirds majority decision of its members present at its meeting that an Honorary Degree or other academic distinction be conferred on any person on the ground that he in its opinion, by reason of eminent attainment and position, is fit and proper to receive such a degree or academic distinction, the Board of Governors may recommend the same for the approval of the Chancellor for conferment of such a Degree on the person concerned.

(2)The Honorary Degree or academic distinction may be conferred only in exceptional cases. It shall not be conferred as a matter of course. Only such of the persons who have contributed substantially to any subject assigned to any School of the University as may be approved or have rendered conspicuous service to the cause of education, research and extension, shall be identified for the purpose of grant of such Honorary Degrees:

Provided that, not more than three eminent persons may be conferred Honoris Causa at a time.

(3) A Degree of Doctor of Science (D.Sc.) Honoris Causa may be conferred upon a person, who has distinguished in any branch of Science or Technology, and Planning, Organizing or Developing Scientific and Technological Institutions.

(4) A Degree of Doctor of Laws (LL.D.) Honoris Causa may be conferred upon a person who is a distinguished Lawyer, Judge or Jurist, Statesman or has made noteworthy contribution to the cause of the public.

(5) A Degree of Doctor of Literature (D.Litt.) Honoris Causa may be conferred upon a person who has distinguished in any branch of Art, Design, Music, Literature, Performing Art, Social Science or related areas or has made noteworthy contribution to the cause of literature and culture.

(6) A Degree of Doctor of Business Science (D.BSc.) Honoris Causa may be conferred upon a person who has distinguished in business, industry or related areas or has made noteworthy contribution to these areas.

80. Withdrawal of Degree or Diploma.-

(1) The Board of Governors may on the recommendation of the Academic Senate arrived at by two third majority decision of its members present, withdraw any distinction, degree, diploma or privilege conferred on or granted to, any person by

a resolution passed by a simple majority of the total number of members of the Board of Governors and by a majority of not less than two-third of the members present and voting at the meeting, if such a person has been found to have obtained such a degree or diploma or certificate fraudulently, or has obtained admission through a false caste certificate or any such claim.

(2) No action under this section shall be taken against any person unless he has been given an opportunity to show cause against the action proposed to be taken.

(3) A copy of the resolution passed by the Board of Governors shall be immediately sent to the person concerned, along with the show-cause notice.

(4) Any person aggrieved by the decision taken by the Board of Governors may appeal to the Chancellor within thirty days from the date of receipt of such resolution and show cause notice

(5) The decision of the Chancellor on such appeal shall be final.

81. Curbing Commercialization of Education:-

(1)Multiple mechanisms with checks and balances shall combat and stop the commercialization of higher education. All HEIs shall follow similar standards of audit and disclosure as a 'not for profit' entity. Surpluses, if any, shall be reinvested in the educational sector. There shall be transparent public disclosure of all the financial matters with recourse to grievance-handling mechanisms to the general public. The accreditation system developed by NAC may provide a complementary check on this system.

(2) All HEIs - public and private - may be treated on par within the regulatory regime. The regulatory regime will encourage private philanthropic efforts in education.

(3) Good Governance, Financial Stability and Security, Educational Outcomes, and Transparent Disclosures shall be as per national guidelines.

(4) Transparent mechanisms of fixing of fees with an upper limit, for different types of institutions depending on their accreditation, shall be as per national laid-out norms and the broad applicable regulatory mechanism.

CHAPTER - XII

UNIVERSITY REVIEW COMMISSION AND OTHER BODIES

82. Appointment of University Review Commission.-

(1) The Chancellor in consultation with the State Government shall constitute the University Review Commission. The members of the commission shall hold office for a maximum period of four years. The Commission shall submit the Report of the review of the University work to the Karnataka State Higher Education Council annually for the review of work done in one year and complete the review of all the Universities within the period of four years.

(2) The members of the Commission shall be eligible for sitting fees and TA, DA for attending the meetings from the funds sanctioned by the Government:

Provided that in case if they visit a University the expenses for this purpose shall be borne by the respective University.

(3) The Commission shall consist of not less than three eminent persons preferably former Vice Chancellors of State or Central University or Directors of Institutes of national importance of whom one shall be the Chairperson.

(4) The terms and conditions of appointment of the Chairperson and the members shall be such as the Chancellor may, determine.

(5) The Commission shall, after holding such enquiry as it deems fit, submit a Report including its recommendations on the University concerned.

(6) The Council shall, forward a copy of the Report of the Commission including its recommendations on the University to the State Government and the State Government may take such action on the same as it deems fit and recommend it to the Chancellor.

(7) The State Government shall lay a copy of the report of the Commission including its recommendations and the Action Taken Report on it before both Houses of the State Legislature, as soon as possible.

83. The Grievance Committee:-

(1) There shall be a Grievance Committee in each University to deal with the grievances of teaching and non-teaching staff as well as students belonging to its Departments/Programmes, Affiliated Colleges and Recognized Institutions, and to hear and redress them as far as may be practicable within three months. The Committee shall make periodical Reports on the grievances dealt with by it to the Board of Governors.

(2) The composition of the Grievance Committee, its powers, functions and the procedure to be followed by it in dealing with the grievances put up before it, shall be as provided by the Statutes.

84. Prevention of Ragging:-

(1) Each University shall constitute an Anti-Ragging Committee to prevent ragging in the University campus and in all its affiliated colleges to ensure that no person indulges in ragging activities.

(2) The constitution, powers and functions of the Anti-ragging Committee shall be as provided by the Statutes.

85. Creation of Certain Special Cells.:-

(1) Each University shall establish and maintain the following Cells, namely:-

(i) Equal Opportunity Cell;

(ii) e-Governance Cell;

(iii) Alumni Cell;

(iv) Women Cell; and such other Cells as per the guidelines of the University Grants Commission or other Statutory or National Regulatory Bodies.

(2)The composition, powers and functions of each of the above Cells shall be as provided by the Statutes.

86. Prevention of Sexual Harassment:-

(1) Each University shall constitute a Committee to ensure the prevention of sexual harassment of its students, employees and scholars and redressing their grievances relating to these.

(2) The constitution, powers and functions of such Committee and the nature of punishment and penalties to be levied shall be as provided by the Statutes.

87. Students' Council:-

(1) Each University shall constitute a Students' Council with regard to extra-curricular or cultural matters, to define their role and to provide for their welfare.

(2) The constitution and the functions of the Students' Council and the frequency of its meetings shall be as provided by the Statutes.

CHAPTER - XIII

FUNCTIONS AND RESPONSIBILITIES OF THE PERSONS ENGAGED IN ASSESSMENT AND EVALUATION WORK

88. Duties of a Teacher:-

(1) Every teacher of the University or of its Affiliated College or Institution shall carry out the work relating to teaching, research, Assessment and Evaluation or any other academic work assigned to him by the University, from time to time.

(2) For the purpose of sub-section (1), both the teaching and non-teaching employees in the service of the University and also of the Colleges or Institutions affiliated to it shall be administratively controlled by the University. They shall abide by the instructions and orders issued by the University from time to time.

89. Obligation to perform the Assessment and Evaluation work:-

(1) Any person who is entrusted with the Assessment and Evaluation work relating to question paper setting, invigilation, supervision, evaluation of answer scripts, conduct of practical Assessment and Evaluations, printing of question papers and answer books, tabulation and preparation of marks cards and all such activities incidental thereto and connected therewith shall discharge such duties prudently and with utmost integrity for attainment of the academic standards.

(2) If any person who has been allotted the Assessment and Evaluation work under sub-section (1), is found guilty of breach of duties or involved in any misbehavior shall on conviction be punished with imprisonment for a period which may extend to three years or with a fine up to ten thousand rupees or with both;

(3) No Courts shall take cognizance of an offence punishable under this Section or the abetment of such offence save on the complaint made by the Registrar (Assessment & Evaluation) of the University concerned.

90. Punishment for abetment of offences:- Whoever instigates or abets the commission of offence punishable under Section 89 shall, on conviction be punished with the same punishment provided for in that Section.

91. Prohibition of private tuition:-

(1) No Teacher of the University or Affiliated College or Institution shall engage himself in private tuition or in any other employment or job in any manner without the permission of the University or the Authority which appointed him.

(2) If any teacher is found involved in private tuition as referred to in sub-section (1) above, disciplinary action shall be initiated against him by the concerned Disciplinary Authority, viz., the Board of Governors in respect of University employees and the Board of Management in respect of Affiliated College or Institution employees.

CHAPTER - XIV
MISCELLANEOUS AND TRANSITORY PROVISIONS

92. Discipline:-

(1) The final authority responsible for the maintenance of discipline among the students of the University shall be the Vice-Chancellor. His directions in this behalf shall be carried out by the Heads of Departments/Programmes, Colleges, Hostels and other Institutions.

(2) Notwithstanding anything contained in sub-section (1),-

(a) the punishment of debarring a student from appearing at the Assessment/Examination shall, based on the report of the Vice-Chancellor be considered and imposed by the Board of Governors; and

(b) the punishment of rustication from a Department/Programme, College, Hostel or an Institution shall be, imposed by the Head of the College, Hostel or Institution concerned;

(3) No resolution of any Authority or Body of the University shall be deemed invalid on account of any irregularity in the service of notice upon any member:

Provided that, the proceedings of such Authority or Body were not prejudicially affected by such irregularity.

93. The Act to prevail over other enactments:- This Act and the Statutes or the Regulations or the Rules made thereunder shall in respect of any College in the University area have effect notwithstanding anything inconsistent therewith contained in any other enactment with respect to matters enumerated in List II of the Seventh Schedule to the Constitution of India.

94. Protection of act done in good faith:- No suit or other legal proceeding shall lie against and no damages shall be claimed from the University or its Authorities, Bodies or Officers for anything which is in good faith done or intended to be done in pursuance of this Act, the Statutes, Regulations or Rules made there under.

95. The Act and proceedings not invalidated merely on the ground of defect in constitution, vacancy, etc.- Notwithstanding that the Board of Governors or any other Authority or Body of the University is not duly constituted or there is any defect in its constitution or reconstitution at any time and notwithstanding that there is a vacancy in the membership of any such Authority or Body, no act or proceeding of such Authority or Body shall be invalidated merely on any such ground or grounds.

96. Relations of Affiliated Colleges with the Universities:- The relationship of the affiliated colleges with the University concerned shall be governed by the Statutes to be made in that behalf. Such Statutes shall provide, in particular, regarding the powers

to be exercised by the University in respect of the colleges affiliated to it, to coordinate and regulate the facilities provided and expenditure incurred by such colleges in regard to libraries, laboratories and other equipment for teaching and research.

97. Transfer of Government Colleges to the Universities:-

(1) The State Government may, by order, published in the Official Gazette, transfer to the University with effect from such date and subject to such conditions as may be specified in the Order, any of its Colleges, any Hostel or other building of such Colleges located in its area of jurisdiction and the articles of furniture, library, books, laboratory, stores, instruments, apparatus, appliances and equipment of such a College. Upon the publication of such Order, the College shall become a College maintained and administered by the University concerned as its Constituent College and the properties mentioned in the Order shall become the properties of that University.

(2) Nothing in this Act shall be deemed to authorize the University to sell, lease, exchange or otherwise dispose of any land or building transferred to the University under sub-section (1).

(3) Where any College has been transferred to the maintenance and control of the University by an Order made under sub-section (1) then, notwithstanding anything contained in this Act, all members of the teaching staff and other employees of the State Government who, immediately before the date of publication of the said Order, were serving in or were attached to the College shall stand transferred to the appropriate cadre or category of posts in that University:

Provided that in the event of transfer of the College to the University, an opportunity shall be afforded to the employees serving in such a College to exercise their option either to continue in the services under the State Government or to be absorbed in the services of the University concerned.

98. Continuance of Statutes, Ordinances, Regulations and Rules:-

(1) Until the Statutes, Regulations and Rules are made under the appropriate provisions of this Act, the Statutes, Ordinances, Regulations and Rules which were made under the provisions of the Karnataka State Universities Act, 2000 or any other Acts repealed under this Act and in force immediately before the commencement of this Act, shall subject to such adaptations or modifications as may be made therein by the Vice Chancellor concerned with the approval of the Chancellor/Board of Governors and in so far as they are not inconsistent with the provisions of this Act be deemed to be Statutes, Regulations and Rules made under the appropriate provisions of this Act.

(2) The person holding the office of the Vice-Chancellor of the University established under the Karnataka State Universities Act, 2000 or any other Act repealed under this Act on the date of the commencement of this Act shall continue to hold office till such date as he would have held that office, if this Act had not been passed.

99. Transitory Provisions:- Notwithstanding anything contained in this Act, the Vice Chancellor concerned may, with the previous approval of the Board of Governors discharge all or any of the functions of the University for the purpose of carrying out the provisions of this Act, and for that purpose may exercise any powers or perform any duties which by this Act are to be exercised or performed by any Authority of the University until such Authority comes into existence as provided by this Act.

100. Power to remove difficulties:-

(1) If any difficulty arises as to the first constitution or reconstitution of any Authority of the University or giving effect to the provisions of this Act, the Board of Governors / State Government may by notification, make such provision not inconsistent with the provisions of this Act as may appear to it to be necessary or expedient for removing the difficulty:

Provided that, no such notification shall be issued after the expiry of five years from the date of commencement of this Act.

(2) Every notification issued under sub-section (1) shall be laid as soon as, may be after it is issued, before each House of the State Legislature while it is in session for a total period of thirty days which may be comprised in one session or in two or more sessions, and if before the expiry of the said period, either House of the State Legislature makes any modifications in any notification or directs that any notification shall not have effect and if the modification or direction is agreed to by the other House, such notification shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that notification.

101. Repeal and Savings:-

(1) The following Acts shall stand repealed from the date on which the Karnataka State Public Higher Education Institutions Act - 2022 comes into force:

(a) the Karnataka State Universities Act, 2000 (Karnataka Act 29 of 2001);

(b) the Kannada University Act,1991 (Karnataka Act 23 of 1991);

(c) the Visvesvaraya Technological University Act, 1994 (Karnataka Act 39 of 1994);

(d) the Karnataka State Open University Act, 1992 (Karnataka Act. 46 of 1994);

(e) the Karnataka Rajya Dr. Gangubai Hangal Sangeetha mattu Pradarshaka Kalegala Vishvavidyalaya Act, 2009 (Karnataka Act 25 of 2009);

(f) the Karnataka Samskrita Vishwavidyalaya Act, 2009 (Karnataka Act 13 of 2010);

(g) the Karnataka Janapada Vishwavidyalaya Act, 2011 (Karnataka Act 11 of 2012); and

(h) Dr. B. R. Ambedkar School of Economics University Act, 2018 (Karnataka Act 20 of 2019)

Provided that the provisions of Section 6 of the Karnataka General Clauses Act, 1899 shall be applicable in respect of the repeal of the said enactment and the provisions of the said law and Sections 8 and 24 of the said Act shall be applicable as if the said enactment and provisions had been repealed and reenacted by this Act.

(2) Notwithstanding such repeal all the Universities established, all appointments made, anything done or taken under the repealed Acts, shall be deemed to be valid and be continued as if they were made under this Act.

Schedule I
(see section 3)
Territorial Jurisdictions of the Universities

Sl.No.	University	Headquarters	Territorial Jurisdiction
1.	Bangalore University	Jnana Bharathi Campus, Bengaluru	Karnataka Legislative Assembly constituencies: Vijayanagara, Padmanabhanagar, Board of Managementmanahalli, Anekal, Bengaluru South, Yesvanthpura, Rajarajeshwarinagar, Dasarahalli, Mahalaxmi Layout and Govindarajnagar of Bengaluru District, Nelamangala of Bengaluru Rural district, Magadi, Ramanagara, Kanakapura and Channapatna of Ramanagara District
2.	Bengaluru City University	Central College Campus, Bengaluru	Karnataka Legislative Assembly constituencies: Shantinagar, Byatarayanapura, Yelahanka, Malleshwaram, Hebbal, Shivaji Nagara, Gandhinagar, Chamarajapet, Chikpet, Basavanagudi, BTM layout, Jayanagar and Rajajinagar of Bengaluru District except Maharani's Science College for Women's, Bengaluru, Maharani's Women's Arts, Commerce and Management College, Bengaluru and Smt. VHD Central Institute of Home Science, Bengaluru.
3.	Bengaluru North University	Jangamakote (Sidalaghatta Taluk)	Karnataka Legislative Assembly constituencies: Srinivaspura, Mulbagal, Kolar Gold Field, Bangarapet, Kolar, Malur and Kolar PG centre of Kolar District; K.R. Puram, Pulakeshinagar, Sarvagnanagar, C V Raman Nagar and Mahadevpura of Bengaluru District; Gowribidanur, Bagepalli, Chikkaballapur, Sidalaghatta and Chintamani of Chikkaballapur District; Devanahalli, Doddaballapura and Hoskote of Bengaluru Rural District
4.	University of Mysore	Mysuru	Revenue Districts:Chamarajanagar, Hassan, Mandya and Mysuru except Govt. college, Mandya.
5.	Karnataka University	Dharwad	Revenue Districts: Dharwad, Gadag, Haveri and Uttara Kannada
6.	Gulbarga University	Kalburgi	Revenue Districts: Kalburgi and Bidar

8.	Kuvempu University	Shankaraghatta Shivamogga	Revenue Districts: Chikamagalur and Shivamogga
9.	Tumkur University	Tumakuru	Revenue District: Tumakuru
10.	Vijayanagara Sri Krishnadevaraya University	Ballari	Revenue Districts: Ballari and Koppal
11.	Rani Chennamma University	Belagavi	Revenue Districts: Belagavi, Bagalkot and Vijayapura
12.	Davanagere University	Davanagere	Revenue Districts: Chitradurga and Davanagere
13.	Kannada University	Hampi within the limits of Kamalapur Municipality or any place within a radius of 10 KMs of Hampi	Whole State (Unitary University)
14.	Visvesvaraya Technological University	Belagavi	Affiliation of Technical Educational Institutions.
15.	Karnataka State Open University	Mysuru	Whole State
16.	Karnataka State Akkamahadevi Women's University	Vijayapura	Affiliation of only women colleges in the State
17.	Karnataka State Dr. Gangubai Hangal angeetha mattu Pradarshaka Kalegala Vishvavidyalaya	Mysuru	Whole State (Unitary University)
18.	Karnataka Samskrita University	Bengaluru District -	Whole State in respect of affiliation of Sanskrit Colleges.
19.	Karnataka Janapada Vishwavidyalaya	Gotagodi of Haveri district	Whole State (Unitary University)
20.	Mandya University	Mandya	Unitary University comprising of Government College, Mandya
21.	Maharani Cluster University	Bengaluru	Comprising of Maharani's Science College for Women; Maharani's Women's Arts, Commerce & Management College; and Smt. VHD Central Institute of Home Science, Bengaluru.
22.	Raichur University	Raichur	Revenue Districts Raichur and Yadagiri
23.	Nrupathunga University	Bengaluru	Unitary University comprising of Govt. Science College (Autonomous), Bengaluru
24.	Dr. B. R. Ambedkar School of Economics University	Bengaluru	Non-affiliating Unitary University

Schedule II

(see Section 5)

Objects of Specific Purpose Universities.

1. Kannada University, Hampi: The Objects include the following:

(a) to become a leading Centre of studies and research in Kannada language and literature, with capacity for education / training of persons interested in these areas, from within India and / or abroad.

(b) to provide for higher learning and research facilities in various subject areas developed in the past, on the basis of Kannada language and literature, like, art, culture, music, dance, drama, folklore, painting, sculpture, architecture, grammar, linguistics, history, religion, logic, geography, astronomy, astrology, indigenous medicine, science, technology, handicrafts and others.

(c) to undertake the translation of relevant publications in other languages into Kannada and vice versa.

(d) to take up the protection and publication of ancient palm leaf manuscripts of learned material in Kannada using modern technology.

(e) to collect and preserve the stone inscriptions and carvings available in the State and elsewhere.

(f) to take up research on Kannada language, culture and history based on above and publicize the same in the society at large.

(g) to collect songs, proverbs, idioms, folklore and other items in Kannada as used in agriculture and other areas through surveys and publish them.

(h) to encourage research on ancient Kannada language and scriptures using modern technologies.

(i) to popularize the use of Kannada language as an educational medium in learning modern science and technology.

(j) to conduct comparative studies of Kannada language and its development in relation to Aryan and other Dravidian languages.

(k) to take all such educational and research initiatives to conserve Kannada heritage and enhance its prestige in the present times.

(l) to develop classical language features of Kannada.

2. Karnataka State Open University, Mysuru: It shall be a non-affiliating Distance Education or learning University,-

(1) To provide increased access to higher education for persons in all the age groups in a cost-effective manner through distance education.

(2) To take steps to enhance and maintain the quality, standard and relevance of its programmes through regular research and development activities.

(3) To enable the delivery of educational programmes by making use of modern Information, Communication and related technologies for improving its reach and satisfaction to the distant students within the State and also elsewhere in India and abroad; Provided that no off-campus centers/study centers/ Affiliated Colleges are established outside the territorial jurisdiction of the State and no franchises are assigned for this purpose.

(4) To take all such educational and research initiatives with a view to be at the forefront of Open Universities in the country.

3. Karnataka State Akkamahadevi Women's University, Vijayapura: It shall be an affiliating University of Women's Colleges,-

(1) To enhance the advancement of learning and pursuit of higher education by women.

(2) To focus and strengthen areas of Higher Education where better opportunities are made available to women such as Medicine, Nursing, Home Science, Textiles, Art and Culture by setting up of specialized institutions throughout the State

(3) To tap women's power in new developing areas as sports/ adventure/ literature/ journalism etc.

(4) To take up studies and research on issues and concerns relating to women.

(5) To serve as a think tank to consider women's problems in the regional, national and international context to seek innovative and practical solutions to them.

(6) To develop a repository of women- related matters, women's contributions to various subject areas and in particular to freedom struggle and national development.

(7) To take all such educational and research initiatives with a view to support women's studies and enhancing the standing of women in the society as a whole.

4. Karnataka Rajya Dr. Gangubai Hangal Sangeeta mattu Pradarshaka Kalegala Vishvavidyalaya, Mysuru:

(1) To be of unitary and residential nature exclusively for furthering the advancement of learning and prosecution of research, documentation, publishing of audio and video recording, popularizing of all branches of music and performing arts;

(2) To conduct study, teaching, research and transmission of knowledge in the broad field of music and performing arts;

(3) To propagate music and performing arts as the symbols of Indian cultural heritage, with no barriers of nationality, language, caste and creed.

5. Karnataka Samskrita Vishwavidyalaya, Bengaluru: It shall be an affiliating University in respect of Sanskrit Colleges,-

(1) To function as a high-level teaching and research institution in Samskrit language, Literature and Vedic studies and Shastras such as Vyakarana, Samkhya, Yoga, Nyaya, Vaisheshika, Mimamsa, Vedanta, Bauddha, Jaina, Dharma Shastra and others and also supportive education;

(2) To preserve, foster and promote the traditional system of learning in Vedic, Agamic and Cognate Literature, with special emphasis on unique features available in Karnataka;

(3) To highlight the wisdom contained in the Vedic and other disciplines, and their reference to the modern world;

(4) To facilitate and regulate advanced study and research in the fields like, Geeta based management science, Yoga based human Psychology, Eco- balance related health related traditional knowledge, Archaeology, Ancient Sciences, Agama Shastra, Ayurvedic Sciences, Humanities, Social Sciences, Performing arts, Fine Arts and Communication, Vedadhyayana and Vedabhashya Studies and any other Sciences that have developed in Samskrit;

(5) To highlight the profoundness of the rational approach and the scientific temper presented in the Vedas and the Shastras in the context of pursuit of knowledge empowerment and realization of higher levels of consciousness;

(6) To consolidate, revive and promote the Bharateeya Jnana Parampara as also to integrate the scientific thoughts contained in the Vedas and Samskrit Literature particularly in the disciplines of Agriculture, Astronomy, Biology, Chemistry, Humanities, Information Technology, Law and Jurisprudence, Management, Mathematics, Metallurgy, Meteorology, Physics, Social Sciences and Yoga with modern scientific and technological studies;

(7) To bring out awareness about the authentic interpretations of the Vedas;

(8) To create a network of Vedic, Samskrit Institutions, Educational and Research oriented Institutes having similar objectives with reciprocal arrangements and facilities for interaction with a view to fostering a synergy of efforts made by all such Universities and Institutions;

(9) To create a body of literature in Modern Indian and foreign languages on the contents of Samskrit and the Vedas;

(10) To translate/publish all the Vedas, Shastrik works and related texts, Bhashyas and Commentaries in Kannada and other languages;

(11) To build-up audio, audio-visual records of Vedic Chanting and related traditional practices;

(12) To take appropriate measures for promoting inter-disciplinary studies and research in the university and such other related activities congenial at University level;

(13) To collect, preserve, critically edit and publish rare manuscripts and ancient works by establishing an Oriental Research Institute in Samskrit;

(14) To computerize and digitize the entire corpus of manuscripts and Samskrit texts;

(15) To bring out Research journals of high standard through the University/Departments;

(16) To organize seminars, conferences, workshops, Vidvath Goshties with a view to promoting awareness about the messages contained in ancient knowledge systems;

(17) To admit educational institutions not maintained by the university to the privileges of the University as affiliated colleges/ mahapathashalas/ pathashalas in Karnataka;

(18) To setup specialized research centres for providing teaching and guidance for the affiliated colleges/mahapathashalas/pathashalas as may be required;

(19) To undertake any other activities connected with or incidental to above objectives of the University;

(20) To establish 'Chairs' in various disciplines for conducting advanced research.

6. Karnataka Janapada Vishwavidyalaya, Gotagodi, Haveri District:

It shall be a Unitary University,-

(1) To provide for higher education and research in all the subjects of folklore, literature, art, music, theatre, handicrafts, folk medicine, food, beverage, cottage industries etc., of Karnataka.

(2) To provide opportunity for study of the culture of Kannada speaking and other Dravidian languages speaking people and culture of the people and culture of the people speaking other languages.

(3) To provide for the study heritage of the indigenous or traditional knowledge with the awareness that “Indigenous culture is not monolithic but redemptively pluralistic”.

(4) To assist for the development of all neglected rural communities and tribes of Karnataka.

(5) To strengthen the indigenous culture to face the challenges of globalization effectively.

(6) To promote as a model university to all the countries particularly to the developing countries.

(7) To collect, compile and publish the folklore of all the communities of different areas in Karnataka scientifically through extensive field work.

(8) To preserve the collected folklore materials through multimedia documentation in the systematic manner in digital form.

(9) To collect the available materials used in the rural and tribal life in the different

areas of Karnataka before they disappear and to exhibit them systematically in the indoor and outdoor exhibitions and to make those places attractive tourist spots.

(10) To introduce folklore as one of the subjects of learning at schools, colleges and higher education centres and also to provide for research at the university level and to confer degrees.

(11) To educate interested people through distance education.

(12) To study folklore on multidisciplinary and interdisciplinary base and to promote research at higher levels.

(13) To make comparative study of folklore of different languages and communities of Karnataka.

(14) To encourage comparative study of Karnataka folklore along with folklore of other states of India. Similarly to encourage the study of folklore of South Asia and other nations of the world, particularly, folklore of developing countries. To implement these objects to enter into agreement with other University or research centres of the State of Karnataka, India and the world.

(15) To facilitate translations of Karnataka folklore and significant folklore studies into English, Hindi and other Indian and foreign languages. And also to translate folklore texts and significant folklore studies available in other Indian languages and languages of the world into Kannada.

(16) To establish Prasaranga for publication of diversities of folklore by the University. To publish books, newspapers, research papers and other publications through the Prasaranga. To propagate the folklore art and culture through multi media. To arrange public lectures by scholars and artists to create awareness among the general public regarding folklore.

(17) To make efforts, for promoting the cottage industries and professional skills, providing self-dependence and self-employment.

(18) To provide financial security and facilitating markets for products of traditional crafts.

(19) To impart essential education aimed at healthy and harmonious society by eradicating impertinent, unreasonable, inhuman and unscientific factors that may exist in the folklore.

(20) To create self confidence among the neglected communities by bringing them into the main stream of the society through modern education. To establish a separate developing faculty for the purpose of maximum utilization of folklore in informal education, mass communication and rural development activities.

(21) To formulate schemes related to the study of folklore and its implementation from time to time.

7. Dr. B. R. Ambedkar School of Economics University, Bengaluru

The aims and objects of the University shall be,-

(a) to become a globally recognised Institution of excellence in the field of higher education focusing on economics and allied disciplines;

(b) to develop the autonomous institution into an advanced centre for teaching, research, training and policy advocacy;

(c) to undertake training programmes for policy makers and others from both public and private sectors;

(d) to offer consultancy and to accept sponsored projects in the fields of economics and other social sciences;

(e) to undertake by itself and to provide assistance for publications including publication of journals, research papers, working papers, policy briefs and of articles, occasional papers, journals, periodicals and books; use of digital media, visual media, print media for its outreach activities and for augmenting library information services for the furtherance of any of its aims and objects;

(f) to cooperate, collaborate and work jointly with International, National, State and other local Agencies or Institutions or Entities in economics and other related disciplines, in the areas of teaching, research, training and policy advocacy, and arrange for exchange of students, material and data as also in organizing symposia, conferences, workshops, interactions and in undertaking research and project consultancies;

(g) to invite representatives of Governments, Universities, Institutions, Policy advocacy groups and such other Organizations of India and of foreign countries and invite outstanding persons in the fields of academics, policy making and business of national or international repute to participate in the programmes of the University;

(h) to do all such lawful acts and things either by itself or jointly with other entities or organizations or persons as the University may consider necessary, incidental and essential or conducive to the attainment of any or all of the objects of the University referred to or implied above;

(i) generally to take all such measures as are within the competence of the University for the promotion of research in respect of social and economic development and to perform all such academic functions and undertake such other academic activities as may be approved by the Executive Council; and

(j) to take up other works as desired by the Executive Council, from time to time, and also works entrusted by the State Government or the Central Government or other Government Agencies, Corporate Bodies- public or private, from time to time, in the fields of economics, education and related aspects.

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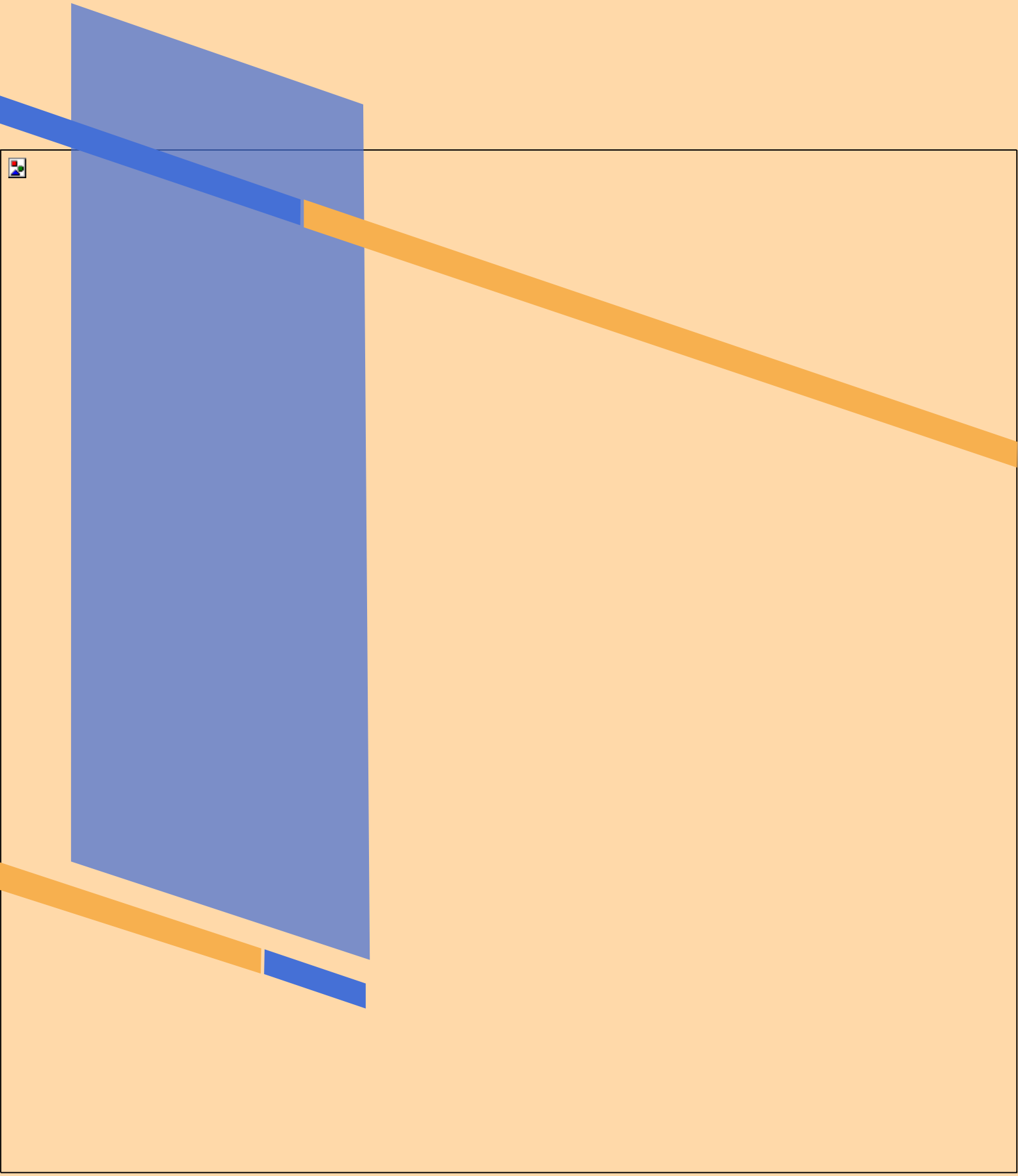
The process followed for drafting the Karnataka State Higher Education Institutions (KSHEI) Bill - 2022.

The committee constituted for drafting of Karnataka State Higher Education Institutions Bill met 20 times (including 04 virtual meetings), apart from several informal meetings, during the period, from 10-05-2020 to date.

The committee considered it important to consult the stakeholders of higher education and understand their concerns, experiences and insights with regard to functioning of HEIs in the state. Accordingly, the stakeholders' consultation was planned to elicit their views. Representatives from the following categories were invited to attend the virtual interaction as per the announced schedule on 30-12-2020:

i. VCs (Coming under Higher Education Dept.)
ii. VCs and Former VCs (Coming under other Depts.- UAS etc.)
iii. VCs & Former VCs of Private and Deemed Universities
iv. Former VCs and its Forum
v. Registrars and Former Registrars of Universities
vi. University Faculty - Professors, Assoc. and Asst. Professors
vii. Principals/ Teachers of Autonomous/Affiliated Colleges
viii. Eminent Academicians / Educationists

The stakeholders were briefed about the context of drafting of KSHEI Bill before the commencement of interaction. All those who could not be present for virtual interaction, were requested to give their inputs in written form through email. The consultations were also done with the Officers of Higher Education Department, Government of Karnataka.

The inputs given by the stakeholders were thematically organised and were considered while drafting of the Bill.

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